



CHAPTER xcvi.

An Act to empower the Fylde Water Board to construct additional waterworks to make better provision with regard to their water undertaking and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS by the Fylde Waterworks (Transfer) Act 1897 the Fylde Water Board (in this Act called "the Board") were constituted and incorporated and were empowered to supply and are supplying water within the borough of Blackpool and the urban districts of Fleetwood Lytham St. Anne's-on-the-Sea and other places all in the county palatine of Lancaster:

And whereas further powers were conferred upon the Board and provisions enacted by the following Acts and Orders (that is to say):—

The Fylde Water Board Act 1899;

The Fylde Order 1904 (confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1904);

The Fylde Order 1905 (confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1905);

The Fylde Water Board Act 1910;

and each of those Acts and Orders is in this Act separately referred to as the Act or Order of the year in which it was passed or confirmed:

And whereas the supply of water from the existing waterworks of the Board is inadequate to meet the present and growing demands of the inhabitants within the water limits of the Board and it is expedient that the Board should be

A.D. 1912. empowered to make and maintain the additional waterworks and other works by this Act authorised:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Board for the purposes herein-after mentioned and such estimates are as follows:—

For and in connexion with the purchase of	£
lands and the construction of the reservoirs	
and road diversions authorised by this Act	- 1,036,985

For and in connexion with the construction of	
the aqueducts authorised by this Act	- - 386,379

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the west riding of the county of York and with the clerk of the peace for the county palatine of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title. 1. This Act may be cited as the Fylde Water Board Act 1912.

Incorporation of Acts. 2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent

[2 & 3 GEO. 5.] *Fylde Water Board Act, 1912.* [Ch. xcvi.]

with the provisions of this Act) are hereby incorporated with A.D. 1912.
this Act (namely):—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of
“ the owner or reputed owner of any such house
“ or of the agent of such owner” in section 44
of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses
Act 1847 with respect to the amount of profit to be
received by the undertakers when the waterworks
are carried on for their benefit and section 83
relating to accounts:

(2) The Lands Clauses Acts except section 127 of the
Lands Clauses Consolidation Act 1845:

(3) The provisions of the Railways Clauses Consolidation
Act 1845 with respect to the temporary occupation
of lands near the railway during the construction
thereof and in such provisions for the purposes of
this Act “the railway” means the waterworks by
this Act authorised and “the centre of the rail-
way” means the boundaries of the reservoirs and the
centres of the aqueducts respectively.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incor-
porated herewith or by the Public Health Acts have the same
respective meanings unless there be something in the subject or
context repugnant to such construction And in this Act unless
the subject or context otherwise requires—

“The Board” means the Fylde Water Board;

“The clerk” means the clerk to the Board;

“The Ribble Fishery Board” means the board of con-
servators of the Ribble Fishery District;

“Statutory borrowing power” means any power whether or
not coupled with a duty of borrowing or continuing
on loan or re-borrowing money or of redeeming or
paying off or creating or continuing payment of or
in respect of any annuity rentcharge rent or other
security representing or granted in lieu of consideration
money for the time being existing under any Act of

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Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

WORKS.

Power to
construct
works.

4. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the following works (that is to say):—

Work No. 1 An impounding reservoir (to be called the Stocks Reservoir) situate in the townships of Bowland Forest (High) Easington and Slaidburn to be formed by means of an embankment or dam $16\frac{1}{2}$ chains or thereabouts in length across the River Hodder at a point on the said river 525 yards or thereabouts measured in a north-easterly direction from the north-easterly corner of Phynis Farm House and extending from the said embankment or dam up the River Hodder to a point in the township of Bowland Forest (High) on the said river 19 chains or thereabouts measured in a north-westerly direction from the northerly side of the bridge known as Chapel House Bridge and also extending from the said embankment or dam up the River Hodder and Bridge House Beck or Bottoms Beck to a point in the township of Easington on the said Bridge House Beck or Bottoms Beck 27 chains or thereabouts measured in a north-easterly direction from the north-easterly side of the bridge across the Bridge House Beck near the building known as Bridge House;

Work No. 2 An impounding reservoir (to be called the Hesbert Reservoir) situate in the townships of Easington and Gisburn Forest to be formed by means of an embankment or dam $21\frac{1}{2}$ chains or thereabouts in length across the Bottoms Beck at a point on the said beck 325 yards or thereabouts measured in a north-easterly direction from the north-easterly corner of the building known as Far Barn and extending from the said embankment or dam up the Bottoms Beck or Dob Dale Beck

to a point on the said Bottoms Beck or Dob Dale Beck A.D. 1912.
on the boundary of the said townships of Easington and
Gisburn Forest $32\frac{1}{2}$ chains or thereabouts measured in a
northerly direction from the north-westerly corner of the
building known as Bottoms ;

Work No. 3 An impounding reservoir (to be called the
Greet Reservoir) situate in the townships of Bowland
Forest (High) and Easington to be formed by means of
an embankment or dam $25\frac{1}{2}$ chains or thereabouts in
length across the River Hodder at a point on the said
river 156 yards or thereabouts measured in a south-easterly
direction from the easterly side of the bridge known as
Cross of Greet Bridge and extending from the said
embankment or dam up the River Hodder to a point in
the township of Bowland Forest (High) on the said river
37 chains or thereabouts measured in a north-westerly
direction from the westerly side of Cross of Greet Bridge ;

Work No. 5 An aqueduct consisting of one or more conduits
or lines of pipes commencing in the Stocks Reservoir by
this Act authorised and terminating in the Whinbrick
Service Reservoir by this Act authorised ;

Work No. 6 An aqueduct consisting of one or more conduits
or lines of pipes commencing in the Hesbert Reservoir by
this Act authorised and terminating by a junction with
the aqueduct (Work No. 5) by this Act authorised ;

Work No. 7 An aqueduct consisting of one or more conduits
or lines of pipes commencing in the Greet Reservoir by
this Act authorised and terminating by a junction with
the aqueduct (Work No. 5) by this Act authorised ;

Work No. 9 An aqueduct consisting of one or more conduits
or lines of pipes commencing by a junction with the
aqueduct (Work No. 5) by this Act authorised and
terminating in the Westby Service Reservoir by this Act
authorised ;

Work No. 10 An aqueduct consisting of one or more
conduits or lines of pipes commencing by a junction
with the aqueduct (Work No. 5) by this Act authorised
and terminating in the existing Weeton Reservoir of the
Board ;

Work No. 11 A service reservoir (to be called Whinbrick
Reservoir) situate in the township of Westby-with-

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Plumptions 221 yards or thereabouts in length and 138 yards or thereabouts in width in the fields or enclosures numbered 508 512 and 520 on the $\frac{1}{2500}$ Ordnance map of the said township (edition 1911) sheet No. LIX.—4;

Work No. 12 A service reservoir (to be called Westby Reservoir) situate in the township of Westby-with-Plumptions the centre being at a point 219 yards or thereabouts measured in a south-easterly direction from the south-easterly corner of the St. Anne's Roman Catholic Church School and 75 yards or thereabouts measured in a north-easterly direction from the south-easterly corner of the Clifton Arms public-house;

Work No. 13 An aqueduct consisting of one or more conduits or lines of pipes commencing in the Whinbrick Reservoir by this Act authorised and terminating in the urban district of St. Anne's-on-the-Sea in the road known as Middle Lane;

Work No. 14 An aqueduct consisting of one or more conduits or lines of pipes commencing in the Westby Reservoir by this Act authorised and terminating by a junction with the aqueduct (Work No. 13) by this Act authorised;

Work No. 15 An aqueduct consisting of one or more conduits or lines of pipes commencing in the Whinbrick Reservoir by this Act authorised and terminating in the township of Ribby-with-Wrea in the Wrea Brook;

Work No. 16 An aqueduct consisting of one or more conduits or lines of pipes commencing in the Westby Reservoir by this Act authorised and terminating by a junction with the aqueduct (Work No. 15) by this Act authorised;

Work No. 17 A diversion of the road from Bentham to Clitheroe commencing in the township of Bowland Forest (High) and terminating in the township of Easington;

Work No. 18 A diversion of the road from Bentham and Clapham to Clitheroe situate in the township of Easington;

Work No. 19 A diversion of the road from Bentham to Clitheroe commencing in the township of Easington and terminating in the township of Bowland Forest (High);

Work No. 20 A diversion of the Preston and Blackpool main road situate in the township of Westby-with-Plumpton. A.D. 1912.

In addition to the foregoing works the Board may upon the said lands make and maintain all such dams walls embankments piers bridges roads ways fences wells tanks water-towers cisterns basins gauges filters filter-beds sluices by-washes waste weirs waste water channels overflows meters inlet works outfalls discharge pipes shafts tunnels adits aqueducts culverts cuts catchwaters channels conduits mains pipes stand-pipes junctions hydrants washouts valves chambers drains telegraphs telephones engines apparatus roadways tramroads approaches buildings houses works and conveniences connected with the herein-before described works or any of them or incidental thereto or necessary for obtaining conducting controlling storing intercepting filtering cleansing repairing maintaining or managing the same.

5. In the construction of the works authorised by this Act the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided as follows:—

Limits of deviation.

The Board shall not construct any embankment or dam of any impounding reservoir by this Act authorised of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or dam and three feet in addition:

Except for the purposes of crossing over a stream canal or railway no part of the aqueducts shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

6. The following provisions for the protection of the Lancashire and Yorkshire and London and North Western Railway Companies (in this section referred to as "the companies") shall notwithstanding anything in this Act contained apply and have effect in respect of their joint railways or other

For protection of Lancashire and Yorkshire and London and North

A.D. 1912. joint property except in so far as may be otherwise agreed between the companies and the Board:—

Western
Railway
Companies.

(1) The construction of the aqueducts (Works Nos. 5 and 15) by this Act authorised and the works connected therewith over into through or under any railways or other property of the companies and any works of maintenance repair and renewal of such works (all of which works are herein-after referred to as "the said waterworks") shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the companies and according to plans sections and specifications to be submitted to and reasonably approved by him before any of the said waterworks are commenced or in the event of any dispute or difference between such engineer and the engineer of the Board then in such manner as shall be settled by arbitration as herein-after provided Provided that if the said principal engineer shall fail to superintend at the time specified in a notice to be given by the Board to the companies of their intention to commence the said waterworks (such time being not less than twenty-one days from the giving of the notice) such works may be executed without his superintendence and if the said principal engineer shall for a period of one month after such plans sections or specifications have been submitted to him neglect or refuse to approve the same or state his requirements with respect thereto he shall be deemed to have approved thereof:

(2) The said waterworks shall be executed by and in all things at the expense of the Board and in such manner as not to cause any injury to the railways or other property of the companies or interruption to the passage or conduct of the traffic thereon and if any such injury or interruption shall arise the Board shall make compensation to the companies in respect thereof:

(3) Notwithstanding anything shown on the deposited plans the Board shall carry the aqueduct (Work No. 5) by this Act authorised and the trough herein-after referred to over the railway of the companies on piers in such situations as shall be reasonably required by the said

engineer and shall lay such aqueduct and trough at a level throughout the whole width of the companies' land between the fences of the railway of fifteen feet at the least above the level of the rails measured to the underside of the said trough : A.D. 1912.

- (4) The said aqueduct where it crosses over the said railway of the companies and for thirty feet beyond the fence on each side thereof shall be carried in iron troughs such troughs being made as far as practicable water-tight and so constructed as to carry away all water which may at any time escape from the said aqueduct clear of the railway works and property of the companies :
- (5) The Board shall at all times maintain such aqueduct and works in connexion therewith where the same are carried over the lands of the companies between the fences of the railway with the height and headway before mentioned and if any subsidence shall occur by which the level of such aqueduct and works be lowered then the Board shall at their own cost whenever called upon by the companies to do so raise or lift the said aqueduct and works over the said lands of the companies to the height and level at which they were originally constructed :
- (6) The aqueduct conduit or line of pipes (Work No. 15) where it will be carried under the railway of the companies and for a distance of twenty-five feet beyond the fence on each side of the railway or on the south side to the outlet in Wrea Brook (if such outlet is less than twenty-five feet from the railway fence) shall be laid in a firm and substantial manner encased in cement concrete at least eighteen inches in thickness and at such level below the ground as will give a depth of not less than six feet between the upper surface of the rails and the top or nearest part of the structure of the concrete encasing the said aqueduct conduit or line of pipes :
- (7) The Board shall bear and on demand pay to the companies the reasonable expense of any temporary works which may be necessary in connexion with the execution of the said waterworks over or under

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their railways and of the employment by the companies of a sufficient number of inspectors watchmen and flagmen to be appointed by the companies for watching their railway property and works with reference to and during the execution of the said waterworks :

- (8) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Board shall not acquire any land or property of the companies but the Board may purchase and take and the companies shall at the request of the Board sell and grant an easement or right of using so much of the lands of the companies as may be necessary for the construction of the said waterworks over into through or under the railways and other property of the companies in accordance with the provisions of this section and the Board shall pay to the companies in respect of any such easement or right such sum as shall in case of dispute be determined by arbitration under and in accordance with the provisions of the Lands Clauses Acts with respect to the settlement of cases of disputed compensation under those Acts :
- (9) The Board shall at all times maintain the said waterworks in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer and if and whenever the Board fail so to do the companies after due notice to the Board except in cases of emergency when such notice shall not be necessary may make and do in and upon the lands of the Board as well as their own lands all such works repairs and things as may be requisite and the reasonable amount of such expenditure as certified by the said principal engineer shall be repaid to the companies by the Board :
- (10) If at any time hereafter the companies require under their existing powers to make any alterations of or to widen their railway or to increase their railway accommodation at the places where the said waterworks cross the railways and property of the companies the Board shall at their own cost make such alterations of the said waterworks within the existing boundaries of the companies' property as may be

reasonably required by the companies to enable them to carry out such alteration or widening of the railway or to provide such increased accommodation and the provisions of this section shall so far as applicable extend and apply to the execution and carrying out by the Board of any such alterations of the said waterworks : A.D. 1912.

- (11) Notwithstanding anything in this Act contained or the approval of the said plans sections and specifications by the said principal engineer or any superintendence as aforesaid by the said principal engineer the Board shall be responsible for and make good to the companies all costs losses damages or expenses which may be occasioned to them or to any of their railways works or property or to the traffic thereon or otherwise by reason or in consequence of the execution or failure of the said waterworks or any or either of them or by any act or omission of the Board or of any persons in their employment or their contractors agents or others and the Board shall effectually indemnify and hold harmless the companies from all claims and demands upon or against them by reason of such execution or failure and of such act or omission :

- (12) If any difference shall arise between the Board and the companies or their respective engineers under this section such difference shall (except where the determination thereof is otherwise provided for) be referred to and determined by an engineer failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

7. The following provisions for the protection of the London and North Western Railway Company (in this section referred to as "the company") shall notwithstanding anything in this Act contained apply and have effect except in so far as may be otherwise agreed between the company and the Board :— For protection of London and North Western Railway Company.

- (1) The construction of the aqueduct (Work No. 5) by this Act authorised and the works connected therewith over any railway canal or other property of the company and any works of maintenance repair and

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renewal of such works (all of which works are herein-after referred to as "the said waterworks") shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the company (herein-after referred to as "the said principal engineer") and according to plans sections and specifications to be submitted to and reasonably approved by him before any of the said waterworks are commenced or in the event of any dispute or difference between the said principal engineer and the engineer of the Board then in such manner as shall be settled by arbitration as herein-after provided Provided that if the said principal engineer shall fail to superintend at the time specified in a notice to be given by the Board to the company of their intention to commence the said waterworks (such time being not less than twenty-one days from the giving of the notice) such works may be executed without his superintendence and if the said principal engineer shall for a period of one month after such plans sections or specifications have been submitted to him neglect or refuse to approve the same or state his requirements with respect thereto he shall be deemed to have approved thereof :

- (2) The said waterworks shall be executed by and in all things at the expense of the Board and in such manner as not to cause any injury to the railway canal or other property of the company or interruption to the passage or conduct of the traffic thereon and if any such injury or interruption shall arise the Board shall make compensation to the company in respect thereof :
- (3) Notwithstanding anything shown on the deposited plans the Board shall carry the aqueduct (Work No. 5) by this Act authorised and the trough herein-after referred to over the railway and canal of the company on piers in such situations as shall be reasonably required by the said engineer and shall lay such aqueduct and trough at a level throughout the whole width of the company's land between the fences of the railway of fifteen feet at the least above the level of the rails and in the same manner and at a level

of twelve feet over the water level of the canal measured to the underside of the said trough : A.D. 1912.

- (4) The said aqueduct where it crosses over the said railway and canal of the company and for thirty feet beyond the fence on each side thereof shall be carried in iron troughs such troughs being made as far as practicable watertight and so constructed as to carry away all water which may at any time escape from the said aqueduct clear of the railway works canal and property of the company :
- (5) The Board shall at all times maintain such aqueduct and works in connexion therewith where the same are carried over the lands between the fences of the railway and of the canal of the company with the height and headway before mentioned and if any subsidence shall occur by which the level of such aqueduct and works be lowered then the Board shall at their own cost whenever called upon by the company to do so raise or lift the said aqueduct and works over the said lands of the company to the height and level at which they were originally constructed :
- (6) The Board shall bear and on demand pay to the company the reasonable expense in and about the superintendence of the works as herein-before provided and also the reasonable expense of any temporary works which may be necessary in connexion with the execution of the said waterworks over their said railway and canal and of the employment by the company of a sufficient number of inspectors watchmen and flagmen to be appointed by the company for watching their railway canal property and works with reference to and during the execution of the said waterworks :
- (7) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Board shall not acquire any land or property of the company but the Board may purchase and take and the company shall at the request of the Board sell and grant an easement or right of using so much of the lands of the company as may be necessary for the construction of the said waterworks over the railway canal and other property of the company in accordance

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with the provisions of this section and the Board shall pay to the company in respect of any such easement or right such sum as shall in case of dispute be determined by arbitration under and in accordance with the provisions of the Lands Clauses Acts with respect to the settlement of cases of disputed compensation under those Acts:

(8) The Board shall at all times maintain the said waterworks in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer and if and whenever the Board fail so to do the company after due notice to the Board except in case of emergency when such notice shall not be necessary may make and do in and upon the lands of the Board as well as their own lands all such works repairs and things as may be requisite and the reasonable amount of such expenditure as certified by the said principal engineer shall be repaid to the company by the Board:

(9) If at any time hereafter the company require under their existing powers to make any alterations of or to widen their railway or canal or to increase their railway accommodation at the places where the said waterworks cross the railway and property of the company the Board shall at their own cost make such alterations of the said waterworks within the existing boundaries of the company's property as may be reasonably required by the company to enable them to carry out such alteration or widening of the railway or canal or to provide such increased accommodation and the provisions of this section shall so far as applicable extend and apply to the execution and carrying out by the Board of any such alterations of the said waterworks:

(10) Notwithstanding anything in this Act contained or the approval of the said plans sections and specifications by the said principal engineer or any superintendence as aforesaid by the said principal engineer the Board shall be responsible for and make good to the company all costs losses damages or expenses which may be occasioned to them or to their railway canal works or property or to the traffic thereon or otherwise by

reason or in consequence of the execution or failure of the said waterworks or any or either of them or by any act or omission of the Board or of any persons in their employment or their contractors agents or others and the Board shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure and of such act or omission:

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- (11) If any difference shall arise between the Board and the company or their respective engineers under this section such difference shall (except where the determination thereof is otherwise provided for) be referred to and determined by an engineer failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

8. For the protection of the lord mayor aldermen and citizens of the city of Manchester (herein-after called "the corporation") the following provisions shall unless otherwise agreed between the Board and the corporation have effect (that is to say):—

For protection of corporation of Manchester.

- (1) Prior to the execution of any works by this Act authorised within the area corresponding with the limits of deviation shown upon the deposited plans referred to in the Manchester Corporation Waterworks Act 1879 the Board shall give one calendar month's notice in writing to the town clerk of the city of Manchester and all works executed within such area shall be executed under the superintendence (if the same shall be given) of and to the reasonable satisfaction of the engineer of the corporation:
- (2) In the execution and maintenance of the works by this Act authorised the works shall be so constructed and maintained as not to interfere with the line level position and construction of the existing and intended aqueducts or lines of pipes of the corporation sanctioned by the Manchester Corporation Waterworks Act 1879 and as delineated on the said deposited plans and sections and so that the works shall be self-supporting and independent of the said aqueducts or lines of pipes

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of the corporation The works within the area aforesaid shall be executed according to plans sections and drawings previously submitted to and reasonably approved in writing by the engineer of the corporation and at such level as shall be shown upon such sections and approved as aforesaid Provided that if for one month after such plans sections and drawings shall have been submitted to such engineer he shall have failed to give notice to the Board of his objections thereto he shall have been deemed to have approved thereof:

- (3) If by reason of the execution of the works by this Act authorised any water main pipe or conduit of the corporation be injured or any additional or increased length of main pipe or conduit become requisite the corporation at the expense of the Board in all things may make such repairs connections and additions as may be required provided that if the corporation neglect after reasonable notice to make the same they may be made by the Board:
- (4) If by reason of the execution of any of the works by this Act authorised any interruption be occasioned to the supply of water by the corporation the Board shall forfeit and pay to the corporation the sum of fifty pounds for every day during which such interruption shall continue:
- (5) If any difference arise between the corporation and the Board touching this section or anything to be done or not to be done or any money other than a penalty to be paid thereunder such difference shall be determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed (on the application of either of the parties) by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto:
- (6) Nothing in this Act contained shall prejudice or affect any of the rights or privileges of the corporation under their existing Acts or any Act or Acts incorporated therewith.

9. For the protection of the mayor aldermen and burgesses of the borough of Blackburn (herein-after called "the corporation") the following provisions shall unless otherwise agreed between the Board and the corporation have effect (that is to say):—

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For protec-
tion of cor-
poration of
Blackburn.

- (1) Prior to the execution of any works by this Act authorised within the area corresponding with the limits of deviation shown upon the deposited plans referred to in the Blackburn Borough Gas Water and Extension Act 1877 the Board shall give one calendar month's notice in writing to the town clerk of the borough of Blackburn and all works executed within such area shall be executed under the superintendence (if the same shall be given) of and to the reasonable satisfaction of the engineer of the corporation:
- (2) In the execution and maintenance of the works by this Act authorised the works shall be so constructed and maintained as not to interfere with the line level position and construction of the existing and intended aqueducts or lines of pipes of the corporation sanctioned by the Blackburn Borough Gas Water and Extension Act 1877 and as delineated on the said deposited plans and sections and so that the works shall be self-supporting and independent of the said aqueducts or lines of pipes of the corporation. The works within the area aforesaid shall be executed according to plans sections and drawings previously submitted to and reasonably approved in writing by the engineer of the corporation and at such level as shall be shown upon such sections and approved as aforesaid. Provided that if for one month after such plans sections and drawings shall have been submitted to such engineer he shall have failed to give notice to the Board of his objections thereto he shall have been deemed to have approved thereof:
- (3) If by reason of the execution of the works by this Act authorised any water main pipe or conduit of the corporation be injured or any additional or increased length of main pipe or conduit become requisite the corporation at the expense of the Board in all things may make such repairs connections and additions as may be required. Provided that if the corporation

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neglect after reasonable notice to make the same they may be made by the Board:

- (4) If by reason of the execution of any of the works by this Act authorised any interruption be occasioned to the supply of water by the corporation the Board shall forfeit and pay to the corporation the sum of twenty-five pounds for every day during which such interruption shall continue:
- (5) If any difference arise between the corporation and the Board touching this section or anything to be done or not to be done or any money other than a penalty to be paid thereunder such difference shall be determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed (on the application of either of the parties) by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto:
- (6) Nothing in this Act contained shall prejudice or affect any of the rights or privileges of the corporation under their existing Acts or any Act or Acts incorporated therewith.

For protection of corporation of Preston.

10. For the protection of the mayor aldermen and burgesses of the borough of Preston (herein-after called "the corporation") the following provisions shall unless otherwise agreed between the Board and the corporation have effect (that is to say):—

- (1) Prior to the execution of any works by this Act authorised within the area corresponding with the limits of deviation shown upon the deposited plans referred to in the Preston Waterworks Act 1853 the Board shall give one calendar month's notice in writing to the town clerk of the borough of Preston and all works executed within such area shall be executed under the superintendence (if the same shall be given) of and to the reasonable satisfaction of the engineer of the corporation:
- (2) In the execution and maintenance of the works by this Act authorised the works shall be so constructed and maintained as not to interfere with the line level position and construction of the existing and intended

aqueducts or lines of pipes of the corporation sanctioned by the Preston Waterworks Act 1853 and as delineated on the said deposited plans and sections and so that the works shall be self-supporting and independent of the said aqueducts or lines of pipes of the corporation. The works within the area aforesaid shall be executed according to plans sections and drawings previously submitted to and reasonably approved in writing by the engineer of the corporation and at such level as shall be shown upon such sections and approved as aforesaid. Provided that if for one month after such plans sections and drawings shall have been submitted to such engineer he shall have failed to give notice to the Board of his objections thereto he shall have been deemed to have approved thereof: A.D. 1912.

- (3) If by reason of the execution of the works by this Act authorised any water main pipe or conduit of the corporation be injured or any additional or increased length of main pipe or conduit become requisite the corporation at the expense of the Board in all things may make such repairs connections and additions as may be required. Provided that if the corporation neglect after reasonable notice to make the same they may be made by the Board:
- (4) If by reason of the execution of any of the works by this Act authorised any interruption be occasioned to the supply of water by the corporation the Board shall forfeit and pay to the corporation the sum of twenty-five pounds for every day during which such interruption shall continue:
- (5) If any difference arise between the corporation and the Board touching this section or anything to be done or not to be done or any money other than a penalty to be paid thereunder such difference shall be determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed (on the application of either of the parties) by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto:

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(6) Nothing in this Act contained shall prejudice or affect any of the rights or privileges of the corporation under their existing Acts or any Act or Acts incorporated therewith.

Supply of
water to
rural district
council of
Bowland.

11.—(1) The Board shall at any time after they commence to supply water from any of the works by this Act authorised supply to the rural district council of Bowland (in this section referred to as "the council") for the supply of the parishes or townships of Bowland Forest (High) Bowland Forest (Low) Easington Newton and Slaidburn or any one or more of those parishes or parts of parishes such daily quantity of water as the council shall from time to time require and take at the price of sixpence per one thousand gallons and such supply shall be delivered at such point or points on the aqueduct from which the supply may be given as may be agreed between the Board and the Council or as failing agreement may be determined by arbitration under this section.

(2) All water taken by the council shall be measured by a meter or other apparatus to be provided by the council and approved by the water engineer of the Board at every point on the aqueduct from which a supply shall be given. Every such meter shall be placed in some suitable chamber or building to be provided by the council and every such meter and all pipes valves and other apparatus connecting it with the aqueduct from which the water is taken shall be fixed and constructed by the Board at the cost of the council. The Board shall at all reasonable times be at liberty after giving forty-eight hours' notice to the council to inspect every such meter and the works appertaining thereto and to test the accuracy thereof and if necessary to require the same to be repaired and maintained at the expense of the council.

(3) The Board shall not be liable for any damage loss or expenses caused by any failure in the supply of water to the council if such failure shall be occasioned by frost unusual drought or any cause beyond the control of the Board or during any time when the works of the Board shall be undergoing necessary repairs or cleansing.

(4) All payments for the water supplied shall be payable half-yearly on the first day of January and the first day of July in every year.

(5) Any difference between the Board and the council under this section shall be settled by an arbitrator to be appointed by agreement or in default of agreement by the President of the Institution of Civil Engineers under and subject to the provisions of the Arbitration Act 1889. A.D. 1912.

12. The following provisions for the protection of the rural district council of Bowland (in this section referred to as "the council") shall unless otherwise agreed between the Board and the council apply and have effect:— For protection of rural district council of Bowland.

(1) Notwithstanding anything in this Act contained the Board shall not collect impound take use appropriate or permanently divert or interfere with any watercourses springs or streams feeding the following springs at or near Whelp Stone Crag in the parish of Gisburn Forest in the rural district of Bowland (that is to say):—

(A) Two springs 270 yards or thereabouts to the east of the Government trigonometrical point on Whelp Stone Crag and adjoining an occupation road leading in a north-easterly direction from Tenters;

(B) A spring 370 yards or thereabouts to the north-east of the said point on Whelp Stone Crag;

(C) A spring 133 yards or thereabouts to the south-west of the said point on Whelp Stone Crag and near North Field; and

(D) A spring 557 yards or thereabouts to the south-west of the said point on Whelp Stone Crag:

(2) Within twelve months after the passing of this Act the Board shall purchase and the council shall sell all works lands water rights plant machinery pipes and fittings which the council have purchased or provided for the purpose of supplying water to Dale Head in the parish of Easington the Board paying to the council the amount of the loan incurred by the council in providing the said supply outstanding at the date of the said purchase:

(3) The diversion of the roads (Works Nos. 17 18 and 19) in the rural district of Bowland shall be executed under the superintendence if the same be given and

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to the reasonable satisfaction of the surveyor to the council (in this section referred to as "the surveyor") and in such manner and according to plans and sections to be previously submitted to and reasonably approved by the surveyor or as in case of difference may be settled by arbitration as herein-after provided Provided that if within twenty-eight days after the said plans and sections shall have been submitted to the surveyor he shall fail to give notice to the Board of his objection thereto he shall be deemed to have approved thereof:

- (4) All mains conduits pipes or other works to be laid under the powers of this Act in or along any road vested in or under the control of the council shall as far as practicable be constructed and laid in such position at the side thereof or where necessary under the metalled portion of the road as the council shall by writing under the hand of the clerk reasonably direct and in any case such mains conduits and pipes shall not without the consent in writing of the surveyor be laid at a less depth than two feet six inches measured from the surface of the ground to the highest part of such main conduit or pipe and no mains conduits pipes or works shall be constructed or laid so as to interfere with the structure or foundations of any bridge vested in or repairable by the council or any arch connected therewith:
- (5) One month before the Board commence to open or break up any such road or any approach to any bridge vested in or repairable by the council or to exercise any of the powers of this Act in relation to the execution of any works authorised by this Act in along or across or in any way affecting any such road or approach they shall serve a notice upon the council describing the proposed works together with plans and sections showing the mode and position in which the works are intended to be executed and the manner in which it is intended that such road or approach shall be interfered with and such works shall be executed under the superintendence of the surveyor if he shall give such superintendence and in accordance with his reasonable requirements and with plans and sections to be previously approved of by him in

writing or if he unreasonably disapprove thereof to be settled by an arbitrator as herein-after provided
Provided that if the surveyor shall not within one month after the said plans and sections shall have been submitted to him express approval or disapproval thereof or signify any requirements in relation thereto he shall be deemed to have approved of such plans and sections :

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- (6) The works shall be so executed as not unreasonably to stop impede or interfere with the traffic along any road or bridge vested in or repairable by the council :
- (7) Whenever the Board shall have opened or broken up any such road in the exercise of any of their statutory powers they shall at their own expense complete the work and fill in the ground to the reasonable satisfaction of the council :
- (8) If in the exercise of any of the powers of this Act any bridge belonging to or maintained by the council or any culverts or works belonging thereto or any of the approaches thereto are in any way damaged or interfered with the Board shall execute and do all works and things necessary for making good such damage or preventing such interference to the reasonable satisfaction and under the supervision of the surveyor if he shall give such supervision and if after reasonable notice from the council the Board fail so to do the council may themselves execute and do such necessary works and things aforesaid and recover the reasonable expense thereof from the Board :
- (9) The Board shall during the progress of the works take all necessary steps at their own expense for protecting the public using any road from injury and shall indemnify the council against all costs losses or damages that may be incurred or suffered consequent upon their neglect or omission to provide such protection :
- (10) The Board shall compensate and indemnify the council for or against any loss or damage caused by the leakage or bursting of the reservoirs or any of the aqueducts by this Act authorised :
- (11) Before commencing such haulage of materials and things for the execution of the works by this Act authorised

A.D. 1912.

as would amount to extraordinary traffic on or over any roads in the rural district of Bowland which are repairable by the council the Board shall give not less than fourteen days' notice in writing to the council of the route along which such haulage is to take place and upon the expiration of such notice the Board shall take over the roads specified in such notice and may reconstruct such roads at their own expense and during the period of such haulage the Board shall maintain and repair at the expense of the Board but to the reasonable satisfaction of the surveyor the said roads and after such haulage is completed hand over the said roads to the council. The council while the said roads are maintained by the Board shall pay to the Board the sum of twenty-two pounds ten shillings per annum per mile of road maintained by the Board and for six years after the said roads shall have been handed back to the council the council shall pay to the Board the said sum per annum in respect of the said roads less the actual amount expended by the council upon the said roads in every year after the same have been handed back until the expiration of the said six years:

- (12) Any difference dispute or question arising under this section the settlement of which is not otherwise herein-before provided for shall be referred to and determined by an engineer to be agreed on between the council and the Board or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of
Bowland
Estate.

13. The following provisions shall unless otherwise agreed in writing have effect for the protection of Theresa Harriet Mary Delacour Lucy Evelyn Murray Mary Elizabeth Towneley and the Right Honourable Mabel Anne Baroness Clifford their heirs and successors in estate and assigns for the time being entitled in possession whether for life or any greater estate to the estate known as "the Bowland Estate" (herein-after called "the owners") :—

- (1) The Board shall within three years after the passing of this Act serve upon the owners notice to treat for the purchase of the whole of the land coloured pink

on the plan herein-after mentioned required for the purpose of constructing forming and maintaining either the Stocks Reservoir (Work No. 1) or the Greet Reservoir (Work No. 3) (herein-after in this section referred to as "the reservoirs") and shall within five years after the passing of this Act serve a like notice upon the owners in respect of the whole of the land coloured pink on the plan herein-after mentioned required for the remaining reservoir and not purchased within the said three years and the Board shall also serve a notice to treat and shall be entitled to acquire in accordance with the provisions of this Act easements for the purposes of the aqueducts (Works Nos. 5 and 7) authorised by this Act (herein-after in this section referred to as "the aqueducts") so far as the same are situate on the estate of the owners but the Board shall not without the previous consent in writing of the owners enter upon take or use any portion of the lands of the owners except the lands coloured pink on the plan signed in duplicate by Sir Charles Day Rose the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments of the House of Lords):

- (2) Notwithstanding the provisions of subsection (1) of this section the owners shall be entitled until service of the notices to treat therein referred to to let or otherwise deal with (except by way of sale) any of the lands in this section referred to in as full and complete a manner in all respects as if the powers given by this Act had not been authorised:
- (3) The Board shall not without the consent in writing of the owners acquire any part of the estate other than the lands referred to in subsection (1) hereof required for the purposes of the reservoirs therein mentioned or any easement or right in or over the same estate other than and except the easement or right of making (including the laying of a tramroad for haulage of materials) maintaining using cleansing repairing and renewing the aqueducts (Works Nos. 5

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and 7) by this Act authorised and of obtaining access thereto but the Board may acquire such easements or rights in accordance with the provisions of subsection (1) of the section of this Act the marginal note of which is "Board may acquire easements only in certain cases" Provided that subsections (2) and (3) of such section shall not apply to such easements or rights or to the lands subject thereto or to the Board or to the owner in respect thereof:

- (4) The Board shall not acquire any sporting rights (other than fishing rights) over any part of the estate of the owners who and their tenants and lessees shall be entitled to exercise the exclusive rights of sporting (other than the right of fishing) on any part of the estate acquired as aforesaid:
- (5) The Board will not at any time allow any bodies or persons either for profit or pleasure to exercise the right to fish in and over the waters of the reservoirs by this Act authorised:
- (6) Any apportionment of rent failing agreement between the Board and the owners shall be determined by arbitration as provided by this section and the land tax and tithe rentcharge (if any) and other outgoings shall be apportioned at the expense of the Board:
- (7) There shall be reserved to the owners the use and privilege of drainage of all farms buildings and places not purchased by the Board as now enjoyed and if any alterations of or works interfering with such drainage are required by the Board in order to prevent pollution of the Board's water the costs of carrying out the alterations and works and of doing any other acts in order to provide an adequate and sufficient drainage for such farms buildings and places are to be borne and paid by the Board and the owners may either carry out such alterations and works to the reasonable satisfaction of the Board and charge the Board therewith or permit the Board to execute the same and in such case a month's written notice of any works required to be done shall be given to the owners:

- (8) The compensation to be paid by the Board to the owners and to all lessees and tenants of the said lands for the compulsory purchase of lands and for easements and rights and for damage caused thereto or otherwise which may be sustained through the exercise of the powers of acquiring such lands easements and rights and otherwise in relation thereto shall failing agreement between the respective parties be settled in manner provided by the Lands Clauses Acts for determining questions of disputed compensation as if such lands easements and rights were lands within the meaning of those Acts: A.D. 1912.
- (9) The lands to be acquired from the owners shall be fenced by the Board from the adjoining property by a substantial stone fence of dry rubble stone and coping set in mortar and of not less than five feet six inches in height from the ground level on the higher side or such other fence as may be approved by the owners and such fences shall be maintained by the Board in proper repair Provided that no barbed wire shall be used in the construction of fences or other works authorised by this Act on the estate of the owners without their consent:
- (10) The materials in any building which may be demolished by the Board on land of the owners in the course of the construction of the works by this Act authorised shall at the option of the owners belong to and be their property and they shall be entitled to remove the same:
- (11) The Board shall at all times give and maintain free of charge in all cases where a supply of water to any property of the owners or their tenants is cut off or diminished by reason of the works of the Board a proper and sufficient supply of pure and wholesome water of not less than the supply existing before such injury as aforesaid:
- (12) In the construction and maintenance of any aqueducts through any lands of the owners the Board shall on the completion of the works or any repairs or other maintenance restore the surface of the ground as near as may be to its former level and state:

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- (13) Any permanent telegraph or telephone wires or other means of communication laid by the Board through the estate of the owners shall be placed underground by the side of and as near as practicable to the line of the said aqueducts and any temporary telegraph or telephone wires shall be laid in such a position and manner and with such metal or other discs affixed to the wires as may be approved by the owners and on completion of the works shall be removed to their satisfaction:
- (14) The Board shall in constructing any aqueduct through any land of the owners fence in all excavations from time to time made on the lands of the owners or in some other effectual manner prevent cattle sheep and other animals from falling into such excavations and the Board shall when the works are completed remove such fences and shall so far as reasonably practicable restore the level surface of the ground excavated and the aqueducts shall be laid underground so as to leave at least two feet six inches between the general surface of the ground and the highest part of any pipe:
- (15) The Board shall from time to time at the request of the owners provide for the drainage or sewerage of the estate suitable culverts or drains where interfered with by their works as authorised by this Act:
- (16) All fences gates watercourses roads conveniences and other matters and things belonging to the owners which may be injured by the Board their contractors or workmen during the construction or maintenance of the works by this Act authorised shall subject to the provisions of this section forthwith after such interference be made good by the Board:
- (17) The Board shall compensate and indemnify the owners and their lessees and tenants for and against any loss or damage caused by the leakage or bursting of the reservoirs aqueducts or works by this Act authorised:
- (18) The right of the owners and their tenants of passing over and using for all purposes the land over or under the aqueducts (except for building or such purposes as would injure the aqueducts or interfere with their maintenance) shall not be interfered with

It shall be lawful for the owners and their tenants A.D. 1912.
to lay out construct and use along over or under
the aqueducts any roads drains or pipes Provided
that such construction and use shall not injure the
said aqueducts or any works by this Act authorised
or the maintenance thereof The Board shall not
except with the consent of the owners fence off or
sever any land of the owners in respect of which
the Board acquire any easement or right:

- (19) Before taking or interfering with any watering or washing places for cattle or sheep belonging to the owners or the supply of water thereto the Board shall construct and provide to the reasonable satisfaction of the owners and at such places and points as the owners shall reasonably approve other suitable watering or washing places in substitution for any watering or washing places so taken or interfered with and shall supply thereto and keep the same supplied with a proper and sufficient supply of water:
- (20) Before commencing any haulage of materials and things for the execution of the works by this Act authorised on or over any roads on or through the estate of the owners not repairable by the inhabitants at large the Board shall give notice in writing to the owners of the road along which such haulage is to take place and shall during the period of such haulage take over maintain and repair at the expense of the Board but to the reasonable satisfaction and under the superintendence of the owners the said road or roads and after such haulage is completed hand over the said road or roads to the owners in as good a condition as they were in before such haulage was commenced:
- (21) The Board shall not at any time use or permit to be used for religious or political purposes any building hut or other premises for the time being existing on any lands acquired by the Board from the owners:
- (22) The Board shall lay down and sow with grass seeds all the slopes (where not constructed of masonry or concrete) of the dams or embankments of the reservoirs and maintain the same in proper order and condition:

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(23) The Board shall from time to time pay to the owners on demand the reasonable costs of the employment by them of two additional keepers or watchers for the protection of the game and for the prevention of persons trespassing upon lands of the owners during the construction of the works by the Board in the locality of the estate of the owners:

(24) The Board shall in addition to any other compensation payable by them under or by virtue of this Act in respect of the estate make full compensation to the owners and their tenants for all damage and loss occasioned to them or any of them respectively or to their stock animals and crops by any act of the Board their officers or contractors and any workmen employed by them or any of them during either construction or maintenance and shall at all times keep the owners indemnified against all and every claim for damage or loss occasioned to or sustained by the owners or their tenants by or by reason of the construction or maintenance of the works by this Act authorised:

(25) The Board shall during the construction maintenance repair and renewal of the works by this Act authorised or any of them at all times take or cause to be taken all such steps as are reasonably practicable to prevent the escape or discharge from the said works or from land in the occupation of the Board into the River Hodder or any tributaries or streams communicating therewith or belonging thereto of any solid or liquid matter detrimental to fish and in the event of any damage being caused to the fishing rights of the owners in any part of the said river or any tributary thereof by reason of any failure to take such steps as are required by this section compensation for such damage shall be payable by the Board to the owners and in case of dispute the amount of such compensation shall be determined by arbitration:

(26) The owners shall be entitled free of cost to inspect and take copies of the records of the registers of the automatic gauges referred to in subsection (1)

of the section of this Act the marginal note whereof is "For protection of certain riparian owners": A.D. 1912.

(27) In case the Board shall omit or fail to discharge the several quantities of compensation water to be provided in accordance with the section of this Act of which the marginal note is "Compensation water" or in case the Board shall omit or fail to comply with or observe the restrictions and obligations contained in the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs." the Board shall pay to the owners if they shall sue for the same the sum of five pounds as liquidated damages for every day or part of a day on which such omission or failure shall occur. The said damages shall be recoverable by the owners without proof of any loss or damage sustained by them and the same shall be recoverable with costs in any court of competent jurisdiction. Provided that the owners shall not be entitled to the benefit of this subsection in addition to the benefit of subsection (4) of the section of this Act of which the marginal note is "Compensation water":

(28) In the event of any tramroad being constructed by the Board through any part of the estate in respect of which an easement only is acquired the following provisions shall apply (namely):—

(A) Such tramroad shall be laid as near as reasonably practicable to the line of the said respective aqueducts and without any storage sidings;

(B) Such tramroad shall be used only during and for the purposes of the construction of the works by this Act authorised and on the completion of the said works or on the expiration of the period mentioned in the section of this Act the marginal note whereof is "Period for completion of works" (whichever event shall first happen) the said tramroad shall be removed by the Board and the surface of the land over which the same shall have been constructed restored to the reasonable satisfaction of the owners;

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(c) In all places where the said tramroad shall be constructed over the estate the Board shall at the option of the owners either effectually fence the same off from the adjoining land of the owners and make crossing-places and erect gates where the owners shall reasonably require and keep the said fences crossing-places and gates in good repair and on the removal of the said tramroad remove such fences and gates or shall leave the said tramroad unfenced and erect and maintain a gate wheresoever the said tramroad shall intersect a wall or fence or cross a road The Board shall keep all such gates to be erected as last aforesaid closed except when opened for the purpose of the user of the said tramroad;

(d) The Board shall take all reasonable means for the prevention of trespass upon the said tramroad or the site of the said respective aqueducts:

(29) Any difference which may from time to time arise between the owners and the Board other than any difference as to the compensation to be paid by the Board to the owners for the compulsory acquisition of or the injuriously affecting (if any) of their property and rights shall be determined by a single arbitrator in manner provided by the Arbitration Act 1889:

(30) The provisions of this section shall be in addition to and not in derogation of any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the owners Provided that the owners shall not be entitled to recover any penalty or compensation under this section and also under any other provision of this Act or any Act incorporated herewith or otherwise in respect of the same damage or injury.

For protection of
Lancashire
County
Council.

14. Notwithstanding anything in this Act contained the following provisions shall have effect for the protection of the Lancashire County Council (in this section referred to as "the county council") unless otherwise agreed in writing between the county council and the Board:—

(1) Where an aqueduct or line of pipes is laid under any main road the same shall be laid so that the upper

surface thereof is not less than four feet below the surface of the road except in special cases where with the consent of the county surveyor a less space may intervene and the trench shall be filled in and the surface of the road made good and kept level with the adjoining surface of the road in accordance with the reasonable requirements of the county surveyor and the Board shall be liable to maintain and repair at their own expense and to the reasonable satisfaction of the county surveyor the roadway over the trench for a period of twelve months from the date of the surface being made good as aforesaid:

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- (2) If after any aqueduct or line of pipes has been laid in the main road any sinking or subsidence of the surface of the road shall occur by reason or in consequence of the said aqueduct or line of pipes the Board shall at their own expense make up the surface of the road to the satisfaction of the county surveyor and if they fail to do so when required by the county surveyor he may on giving the Board twenty-four hours' notice cause the work to be done and all expenses incurred in connection with such work as certified by the county surveyor shall be paid by the Board to the county council within one month after the notice of the amount so certified by the county surveyor has been given to the Board:
- (3) The county council shall not be liable to the Board for any damage done to any aqueduct or pipe or pipes of the Board laid under a main road caused by the use of a road roller The Board shall indemnify the county council from claims for damages that may be made against the county council by reason of any sinking or subsidence of the road caused by the construction or failure of any aqueduct or line of pipes:
- (4) If by reason of the construction of the works by this Act authorised any increased expense is incurred by the county council in connection with the maintenance and repair of any main road such increased expense shall be paid by the Board to the county council within one month after notice of the amount

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as certified by the county surveyor has been given to the Board :

- (5) The aqueduct described as Work No. 13 shall not be carried across the Hundred Bridge known as Peel Mill (Hundred) Bridge but shall be constructed across the stream on separate supports in such a manner that sufficient space shall be left between the aqueduct and the sides and buttresses of the said bridge as will enable the county council to conveniently maintain and carry out repairs to the said bridge without additional cost being imposed upon them :
- (6) The diversion of the Preston and Blackpool main road situate in the township of Westby-with-Plumpton described as work No. 20 in this Act shall be carried out on the lines and levels and between the points marked A and B shown on the plan signed in duplicate by Sir Charles Rose the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords :
- (7) The Board shall take the necessary steps to acquire the land required for the purpose of carrying out the diversion of the said road as shown upon the said plan and shall deliver to the county council vacant possession thereof within twelve months of the passing of this Act free of cost to the county council and the county council shall on receiving vacant possession of such land commence and carry out the diversion of the said main road instead of the same being carried out by the Board As the carrying out of the diversion is proceeded with the Board shall pay to the county council within twenty-one days after a certificate signed by the county surveyor has been sent to the Board certifying the amount spent by the county council in the period in respect of which the certificate is granted one-half of such amount Provided the Board shall not be required to pay under such certificates an amount exceeding in the whole five thousand pounds :

(8) The Board as soon as they are by means of the works A.D. 1912
by this Act authorised in a position to supply water
shall if required supply in bulk to the Preston Rural
District Council such daily quantity of water as may
from time to time be required by such council for
use within the township of Lea Ashton Ingol and
Cottam and the townships of Barton and Broughton
The price to be paid for such supply of water in bulk
and the conditions under which it shall be supplied
and taken shall be settled by agreement between the
Board and the said rural district council or failing
agreement by an arbitrator to be appointed by the
Local Government Board:

(9) The Board shall if and when required by the visiting
committee of the Whittingham Asylum supply water
through a meter from the main which is proposed to
be constructed through the property of the Lancashire
Asylums Board (into a connecting service pipe to be
constructed by the asylums board) to an amount of
not exceeding one hundred thousand gallons per day
for the purposes of the asylum and any extensions
thereof and any houses or other buildings connected
therewith at a price of sixpence halfpenny per
thousand gallons subject to the asylums board paying
the cost of the meter and meter-house and of making
the necessary connections with the main and subject
also to such conditions as to the control and manage-
ment of the meter and other matters as may be
agreed upon between the asylums board and the
Board or failing agreement as may be settled by an
arbitrator to be appointed by the Local Government
Board.

15.—(1) The Board shall erect fit up and maintain or Accommo-
dation for
workmen
employed
on construc-
tion of
reservoirs.
provide—

- (A) Such huts or buildings for the accommodation of the
workmen employed in and about the construction
of the reservoirs Works Nos. 1 2 and 3 authorised
by this Act;
- (B) Such hospital accommodation for the treatment of
cases of sickness or accident among such workmen
including accommodation for dealing with infectious
diseases ;

A.D. 1912. as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building and hospital.

(2) The Board shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or otherwise.

(3) The medical officer of health of the county council of the West Riding of Yorkshire (herein-after called "the county council") and the medical officer of health and inspector of nuisances of the rural district council of Bowland shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Board shall give every such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such medical officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the county council that the Board have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Board shall afford and maintain such accommodation as the county council may require. Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Board give notice to the county council that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board on the application of either of the parties to the difference and the Local Government Board may make such requirements (if any) in variation of the requirements of the county council as they may think fit.

(6) If the Board fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty

pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the county council. A.D. 1912.

(7) Any expenses incurred by the county council in carrying out the provisions of this section shall be repaid to the county council by the Board and shall be recoverable as a debt from the Board to the county council.

(8) The Board shall pay to the Local Government Board any expenses incurred by that Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connection with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section.

16.—(1) Subject to the provisions of this Act the Board may stop up—

Power to stop up roads and footpaths.

- (A) So much of the existing road from Bentham to Clitheroe situate in the township of Bowland Forest (High) as lies between the points of commencement and termination of the road diversion (Work No. 17) by this Act authorised;
- (B) So much of the existing road from Bentham and Clapham to Clitheroe situate in the township of Easington as lies between the points of commencement and termination of the road diversion (Work No. 18) by this Act authorised;
- (C) So much of the existing road from Bentham to Clitheroe situate in the townships of Easington and Bowland Forest (High) as lies between the points of commencement and termination of the road diversion (Work No. 19) by this Act authorised;
- (D) So much of the Preston and Blackpool main road situate in the township of Westby-with-Plumpton as lies between the points of commencement and termination of the road diversion (Work No. 20) by this Act authorised:

Provided that the Board shall not stop up the portions of the roads hereinbefore described until the road diversions by this Act authorised are respectively completed to the satisfaction of the road authority and are open for public use or in case of difference between the Board and the road authority until two justices

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(2) The Board may divert in the manner shown on the deposited plans the public footpaths there marked as intended to be diverted and may stop up and cause to be discontinued as footpaths so much of the said footpaths as will be rendered unnecessary by the new portions of the footpaths shown on the deposited plans but the Board shall not stop up the said portions of footpaths until two justices shall have certified that the said new portions of footpaths have been completed to their satisfaction and opened for public use.

(3) As from the completion of the road and footpath diversions by this Act authorised to the satisfaction of the road authorities respectively or as from the date of the said certificates (as the case may be) all rights of way over or along the existing portions of road and footpath as will be rendered unnecessary by the new portions of road and footpath respectively shall be extinguished and the Board may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portions of road and footpath stopped up as far as the same is bounded on both sides by lands of the Board and the site of such portions of road and footpath shall be vested in them.

(4) The Board shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Maintenance
of diverted
roads.

17. The road diversions by this Act authorised shall be maintained in repair by and at the cost of the Board for twelve months as from their completion to the satisfaction of the road authorities respectively or as from the dates of the certificates of the justices (as the case may be) and from and after the expiration of the said respective periods of twelve months such road diversions shall be maintained in repair by and at the expense of the authority or person by whom or at whose expense the road in substitution for which the road diversion is made was repairable.

18. Subject to the provisions of this Act the Board may A.D. 1912.
 for the purposes of their waterworks collect impound take use Power to
 and appropriate all the waters of the River Hodder at and above take waters.
 the embankment or dam of the Stocks Reservoir and of all the
 tributary streams and springs of that river above the said embank-
 ment or dam and also all the waters of the Bottoms Beck at and
 above the embankment or dam of the Hesbert Reservoir and
 of all the tributary streams and springs of that beck above the
 last-mentioned embankment or dam Provided that the Board
 shall not collect impound take use or appropriate the waters
 of the streams known as the Barn Gill and Phynis Beck or
 either of them or any other waters which would by natural
 gravitation flow into either of such last-mentioned streams.

19.—(1) As full compensation to all persons for taking Compensa-
 diverting and appropriating all the waters of the River Hodder tion water.
 and the Bottoms Beck and their tributaries respectively which
 the Board are authorised to take by this Act and before they
 shall be entitled to take any such waters for supply they shall
 (subject to the provisions of this Act) commence to discharge
 and shall thenceforth cause to be discharged or permit to flow
 from the under-mentioned reservoirs to and into the respective
 rivers and streams on the course of which such reservoirs are
 respectively situate the several quantities of compensation water
 following namely:—

(A) From the Hesbert Reservoir on and from the filling for
 use of that reservoir (and until the Stocks Reservoir
 shall be completed and brought into use) one million
 two hundred and sixty-six thousand and seventy-three
 gallons per day Provided always that the Board from
 time to time may take into or intercept by means
 of the Stocks Reservoir the whole or any part of the
 compensation water discharged from the Hesbert
 Reservoir when that compensation water reaches the
 Stocks Reservoir (if and when that reservoir has been
 constructed):

(B) From the Greet Reservoir on and from the filling for
 use of that reservoir (and until the Stocks Reservoir
 shall be completed and brought into use) one million
 five hundred and eighty-one thousand three hundred
 and sixty-four gallons per day Provided that the
 Board may take into and intercept by means of the

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Stocks Reservoir the whole or any part of the water discharged from the Greet Reservoir when the compensation water reaches that reservoir (if and when that reservoir has been constructed):

- (c) From the Stocks Reservoir on and from the filling for use of that reservoir six million five hundred and forty-eight thousand three hundred and eighty-two gallons per day and thereupon the said quantity of six million five hundred and forty-eight thousand three hundred and eighty-two gallons per day shall be taken as full compensation to all persons below the embankment of the Stocks Reservoir for the taking diverting and appropriation of all the waters of the River Hodder and the Bottoms Beck and their tributaries which the Board are authorised to take by this Act:

And such compensation water shall be given in a regular and continuous flow throughout the twenty-four hours of each day Provided that during the first filling of any reservoir the Board shall discharge out of such reservoir the compensation water as hereinbefore provided so long only as there shall remain in such reservoir sufficient water to enable them to comply with the provisions of this section but the Board shall not during the first filling of any reservoir impound water thereby at any time when the quantity of water passing down the river below the dam of such reservoir is flowing at a less rate than the rate at which compensation water would but for this proviso be required to be discharged out of such reservoir.

(2) The Board shall construct and for ever after maintain in good repair within two hundred yards below the embankment or dam of the respective reservoirs aforesaid suitable and efficient gauges for measuring the quantities of water to be discharged or to flow from the reservoirs respectively and such gauges shall be open to the inspection and examination of any person appointed by the Ribble Fishery Board and of the several persons for the time being interested in the water so to be discharged or flow through or over the same.

(3) In the event of any difference or disagreement between the Board and the Ribble Fishery Board and the persons referred to in the last preceding subsection or any of them with respect to the construction maintenance or use of the

gauges or any of them such difference or disagreement shall be settled and determined by an engineer to be agreed upon by the parties in difference or failing such agreement by an engineer to be nominated on the application of either party after seven days' notice in writing to the other party by the President of the Institution of Civil Engineers in London. A.D. 1912.

(4) In case the Board omit or fail to discharge or permit to flow the several quantities of water by this section required to be discharged or to flow over or through the said several gauges the Board shall for every day on which such omission or failure shall occur pay a penalty not exceeding five pounds to the occupiers of any mills or works on the course of the river or stream respectively who may have sustained loss by such omission or failure.

20. The Board shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of Board to abstract water.

21. Subject to the provisions of the sections of this Act whereof the marginal notes are respectively "For protection of certain riparian owners" and "For protection of West Riding Rivers Board West Riding County Council Lancashire County Council and River Ribble Joint Committee" the following provisions shall have effect (that is to say):— Supply from Bottoms Beck and River Hodder until completion of reservoirs.

(1) Until the time limited for the completion of the Hesbert Reservoir shall have expired or the said reservoir shall have been constructed whichever may first happen the Board may take appropriate and use from the Bottoms Beck any water they may require subject to the following restrictions:—

They shall place a weir and a suitable and efficient measuring gauge across the said Bottoms Beck at or near the point of abstraction over or through which one million two hundred and sixty-six thousand and seventy-three gallons of water shall be allowed to pass and flow down the said beck every day of twenty-four hours if and so long as the said beck shall during the said twenty-four hours yield the said quantity of water:

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- (2) Until the time limited for the completion of the Greet Reservoir shall have expired or the said reservoir shall have been constructed whichever may first happen the Board may take appropriate and use from the River Hodder any water they may require subject to the following restrictions :—

They shall place a weir and a suitable and efficient measuring gauge across the said River Hodder at or near the point of abstraction over or through which one million five hundred and eighty-one thousand three hundred and sixty-four gallons of water shall be allowed to pass and flow down the said river every day of twenty-four hours if and so long as the said river shall during such twenty-four hours yield the said quantity of water :

- (3) Until the time limited for the completion of the Stocks Reservoir shall have expired or the said reservoir shall have been completed whichever may first happen the Board may take appropriate and use from the River Hodder any water they may require subject to the following restrictions :—

They shall place a weir and a suitable and efficient measuring gauge across the said river at or near the point of abstraction over or through which six million five hundred and forty-eight thousand three hundred and eighty-two gallons of water shall be allowed to pass and flow down the river every day of twenty-four hours if and so long as the said river shall during the said twenty-four hours yield the said quantity of water :

- (4) The Board shall not be entitled to take or appropriate under the provisions of this section any water from any river or stream at any time when the flow of the water in such river or stream immediately below the weir and measuring gauge to be placed therein shall be at a less rate than such as would allow the daily quantity of water mentioned in relation to such weir and measuring gauge to flow over or through the same in twenty-four hours of continuous flow :

- (5) In case of any neglect on the part of the Board to comply with or observe the foregoing restrictions the

Board shall for every day on which such neglect occurs forfeit and pay to each of the persons who may have sustained loss thereby and who may sue for and recover the same the sums of five pounds.

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22. If the works by this Act authorised and delineated on the deposited plans are not completed within twenty years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Board may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the aqueducts or lines of pipes authorised by this Act lay down additional lines of pipes to form part of such aqueducts as and when occasion may require.

Period for completion of works.

23. Notwithstanding anything in this Act contained the following provisions shall (except so far as may be otherwise agreed in writing) apply for the protection of each of the owners named in the Second Schedule to this Act or other the owners or owner for the time being of the estates or any part of the estates in the said schedule mentioned situate upon the banks of the River Hodder and the said owners are in this section referred to as "the riparian owners":—

For protection of certain riparian owners.

- (1) The Board shall construct and maintain in good repair efficient apparatus for registering and automatically recording the flow of the several quantities of compensation water to be provided in accordance with the section of this Act to which the marginal note is "Compensation water" (hereinafter in this section called "the compensation water") and for registering and automatically recording the quantities of water taken appropriated and used and the quantities of water allowed to pass and flow down the several rivers or streams mentioned in the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" and shall keep the records of all such registers for a month at some convenient place near the respective gauges referred to in the said sections and thereafter at the head office of the Board

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and the said gauges and apparatus and the records thereof shall at all convenient times be open to the inspection of the riparian owners and each of them and their or his agents or agent duly authorised in writing :

(2) The Board shall keep the said weirs and measuring gauges in good repair and shall also construct and keep in good repair suitable and efficient gauges for measuring the quantity of water taken or appropriated under the section of this Act the marginal note of which is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" :

(3) In case the Board shall omit or fail to discharge the said several quantities of compensation water or in case the Board shall omit or fail to comply with or observe the restrictions and obligations contained in the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" or the restriction herein-after contained with respect to the maximum quantity of water which may be taken or appropriated by the Board in any one day under the provisions of that section or shall fail to comply with the provisions of subsection (2) of this section the Board shall pay to each of the riparian owners who shall sue for the same the sum of five pounds as liquidated damages for every day or part of a day on which such omission or failure shall occur The said damages shall be recoverable by every such owner without proof of any loss or damage sustained by him and the same shall be recoverable with costs in any court of competent jurisdiction Provided that the total amount recoverable by the riparian owners in respect of one day on which any such omission or failure shall occur shall not exceed fifty pounds in the aggregate Provided also that no riparian owner who shall be entitled to the benefit of this subsection shall also be entitled to the benefit of subsection (4) of the section of this Act of which the marginal note is "Compensation water" :

(4) The Board shall during the construction maintenance A.D. 1912.

repair and renewal of the works by this Act authorised or any of them at all times take or cause to be taken all such steps as are reasonably practicable to prevent the escape or discharge from the said works or from land in the occupation of the Board into the River Hodder or any tributaries or streams communicating therewith or belonging thereto of any solid or liquid matter detrimental to fish and in the event of any damage being caused to the fishing rights of any of the riparian owners in any part of the said river or brook or any tributary thereof by reason of any failure to take such steps as are required by this section compensation for such damage shall be payable by the Board to such owner and in case of dispute the amount of such compensation shall be determined by arbitration:

(5) The Board shall serve simultaneously and within three years from the commencement of this Act all notices to treat for the lands required for at least one of the impounding reservoirs by this Act authorised and for the lands or easements required for the aqueduct Work No. 5 and in default of the service of such notices to treat within the time aforesaid all powers conferred upon the Board by the section of this Act the marginal note of which is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" shall cease and determine:

(6) The powers of taking water under the section of this Act the marginal note of which is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" shall cease at whichever of the following dates shall be the earlier viz.:—

(A) The date of the completion of the construction of one of the impounding reservoirs by this Act authorised; or

(B) The expiration of nine years from the passing of this Act Provided that if in the opinion of an engineer to be appointed by the President for the time being of the Institution of Civil Engineers on the application of the Board the Board shall

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have been prevented by unforeseen circumstances from completing one of such reservoirs within the said period of nine years such period shall be extended to such date as the said engineer may allow. Provided also that all costs reasonably and properly incurred by each of the riparian owners in connection with the reference to any such engineer shall be borne and paid by the Board unless such engineer shall certify that the conduct of such riparian owner has been unreasonable :

- (7) Not more than five million gallons shall be taken or appropriated in any one day under the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" :
- (8) The respective points of abstraction mentioned in the last-mentioned section shall not be below the sites of the respective intended reservoirs and the Board shall construct and maintain each inlet pipe constructed by them for taking or appropriating water under the said section from any river or stream at such level that no water can be abstracted thereby unless water is passing over or through the weir and measuring gauge constructed in connection therewith at a rate not less than such as would allow the daily quantity of water mentioned in such section in relation to such weir and measuring gauge to flow over or through the same in twenty-four hours of continuous flow :
- (9) Notwithstanding the provisions of the section of this Act of which the marginal note is "Compensation water" the Board shall pay to each of the riparian owners full compensation for any damage to his estate by any injurious affecting of his fishing rights in any part of the River Hodder or any tributary thereof by reason of the collecting impounding taking using or appropriating of any streams and waters by this Act authorised to be collected impounded taken used or appropriated :
- (10) The Board shall from time to time make full compensation to each of the riparian owners and his

lessees and tenants for all damage and injury losses and expenses whatsoever which may from time to time be incurred or suffered by him or them by reason or in consequence of the bursting or giving way or leakage of any of the reservoirs or aqueducts by this Act authorised:

- (11) The Board shall not supply in bulk beyond their present limits of supply (except in the township of Lea Ingol Ashton and Cottam in the rural district of Preston) any water taken under this Act or under their existing powers until one of the impounding reservoirs authorised by this Act has been constructed and brought into use and shall not thereafter supply in bulk beyond such limits of supply any such water except for the supply of the said township and any township through which any aqueduct authorised by this Act shall pass:
- (12) On and from the date on which the Board shall commence the construction of any part of the aqueduct (Work No. 5) by this Act authorised to the north-east of Dobson's Hall in the township of Chipping or of any of the works by this Act authorised higher up the Hodder Valley and until the completion of such aqueduct and other works they shall thenceforth during such periods as such aqueduct and works may be under construction pay the sum of fifty-two pounds per annum in advance to the joint receipt of William King-Wilkinson William Peel Henry Wilson Worsley Taylor and Ralph John Aspinall or the survivors or survivor of them or the successors in title to the estate of such survivor or any person or persons to be from time to time appointed by writing under the hands of them or the survivors or survivor of them or such successors to receive the same such annual sum to be from time to time applied by the persons or person entitled to receive the same in defraying the expenses of the employment by such persons or person of a water bailiff for the protection of the fisheries of the riparian owners:
- (13) If any question (other than a claim for liquidated damages under subsection (3) of this section) shall

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arise between the Board on the one hand and the riparian owners or any one or more of them on the other hand as to the true intent and meaning of any of the provisions of this section or as to anything to be done or not to be done thereunder the same shall be referred to a single arbitrator Provided that in the case of any arbitration as to the amount of any compensation payable to the riparian owners or any one or more of them under subsections (9) and (10) of this section the provisions of section 34 of the Lands Clauses Consolidation Act 1845 and of the Lands Clauses (Taxation of Costs) Act 1895 shall apply to such arbitration :

- (14) The provisions of this section shall be in addition to and not in derogation of any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the riparian owners or any one or more of them Provided that no riparian owner shall in respect of the same loss or damage be entitled to recover compensation or damages under this section and also under any other provision of this Act or any Act incorporated therewith or otherwise but nothing in this section shall deprive the riparian owners or any of them of the right to proceed to enforce any of the provisions of this Act by injunction mandamus or other legal process.

For protection of the King-Wilkinson estates.

24. Notwithstanding anything contained in this Act the following provisions for the protection of William King-Wilkinson or other the owner or owners for the time being (in this section called "the owner") of the Whiteholme Dunnaw and Townhead estates in the townships of Slaidburn Newton Easington and Forest of Bowland (Lower Division) in the West Riding of the county of York (in this section collectively referred to as "the estate") or any part of the estate shall except so far as may be otherwise agreed in writing between the Board and the owner apply and have effect (that is to say) :—

- (1) The Board shall not acquire any part of the estate lying below Slaidburn Bridge or to the west of Sagar Hill Road or any easements or rights in or over the same other than an easement or right of making maintaining using cleansing repairing and renewing

the aqueduct (Work No. 5) by this Act authorised and of obtaining access thereto and an easement or right of making maintaining working using repairing and renewing a tramroad but the Board may acquire such easements or rights in accordance with the provisions of subsection (1) of the section of this Act the marginal note of which is "Board may acquire easements only in certain cases" Provided that subsections (2) and (3) of such section shall not apply to such easements or rights or to the lands subject thereto or to the Board or the owner in respect thereof Provided also that the Board shall be at liberty to make use of any material excavated in the construction or maintenance of the said works: A.D. 1912.

- (2) No house or building shall be constructed on any part of the estate in respect of which an easement only is acquired other than valve houses or other similar buildings for working the said aqueduct and all such houses and buildings shall be of such design and character as shall be reasonably approved by the owner :
- (3) The Board shall not fence off or sever from the adjoining lands any lands forming part of the estate in respect of which an easement only shall be acquired but after the covering in of the said aqueduct the owner his lessees and tenants shall have the same rights of passing over and using such lands for all purposes other than building thereon as if such lands had not been taken or used by the Board but so as not in any way to injure or endanger the aqueduct tramroad or works of the Board or to impede or interfere with the exercise of the easements or rights acquired by the Board :
- (4) Before entering upon any part of the estate for the purpose of constructing any of the works by this Act authorised the Board shall give not less than three weeks' written notice to the owner of their intention so to do and the construction of the said works shall be completed within a reasonable time from the expiration of such notice as aforesaid :
- (5) In the construction and maintenance of the said works in or upon any part of the estate in respect of which

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an easement only is acquired the Board shall first carefully remove from the surface all vegetable soil on the line or site of the works and on the completion of such construction or maintenance they shall replace such soil so as to restore the surface as nearly as may be to its former state. All surplus soil or material excavated in the construction or maintenance of the works shall be deposited on such part of the estate as the owner may direct not being at a greater distance from the place from which the same was excavated than one-quarter of a mile. No materials other than such as shall have been excavated from the estate or than such as shall be required for the construction of the works shall be deposited upon any part of the estate which shall not have been acquired by the Board:

- (6) The Board shall in constructing any aqueduct through any land of the owner fence in all excavations from time to time made on the land of the owner or in some other effectual manner prevent cattle sheep or other animals from falling into such excavations and the Board shall when the works are completed remove such fences:
- (7) The Board shall not excavate any materials from any part of the estate which shall not have been acquired by the Board except so far as may be necessary in the course of constructing and maintaining the works by this Act authorised on such part of the estate:
- (8) The Board shall lay all aqueducts and lines of pipe laid in any part of the estate so far as reasonably practicable so that the top thereof shall not be nearer to the present surface of the land than three feet:
- (9) All walls fences gates sewers drains pipes water supplies and other like matters and things belonging to the owner which may be interfered with by the Board during the construction or maintenance of the said works shall subject to the provisions of this section be made good as soon as practicable by the Board who shall in such construction and maintenance do as little damage as possible to the estate and to the user and enjoyment thereof:

(10) The Board shall not take or appropriate or interfere with any watercourse spring stream or waters on any part of the estate below the site of the dam of the Stocks Reservoir but where necessary the Board shall so divert any such watercourse spring stream or waters that the same shall flow as nearly as may be in the same course and at the same level as at present : A.D. 1912.

(11) As soon as reasonably practicable after the said aqueduct shall have been laid through the estate any telegraph or telephone wires or other means of communication laid by the Board through the estate shall be placed underground by the side of and as near as practicable to the said aqueduct :

(12) In the event of any tramroad being constructed by the Board through any part of the estate in respect of which an easement only is acquired the following provisions shall apply namely:—

(A) Such tramroad shall be laid as near as reasonably practicable to the line of the said aqueduct and without any storage sidings;

(B) Such tramroad shall be used only during and for the purposes of the construction of the works by this Act authorised and on the completion of the said works or on the expiration of the period mentioned in the section of this Act the marginal note whereof is "Period for completion of works" (whichever event shall first happen) the said tramroad shall be removed by the Board and the surface of the land over which the same shall have been constructed restored to the reasonable satisfaction of the owner;

(c) The Board shall fence the said tramroad where the same shall pass through Great Dunnor Wood with a good unclimbable iron fence on the north-westerly side thereof and keep the said fence in good repair and shall erect and maintain gates across the said tramroad at the south-westerly end of the said wood and on the northerly side of and adjoining the highway in Slaidburn opposite the village green and shall keep the said gates closed

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except when opened for the purpose of the user of the said tramroad;

(D) In all other places where the said tramroad shall be constructed over the estate the Board shall at the option of the owner either effectually fence the same off from the adjoining land of the owner and make crossing-places and erect gates where the owner shall reasonably require and keep the said fences crossing-places and gates in good repair and on the removal of the said tramroad remove such fences and gates or shall leave the said tramroad unfenced and erect and maintain a gate wheresoever the said tramroad shall intersect a wall or fence or cross a road. The Board shall keep all such gates to be erected as last aforesaid closed except when opened for the purpose of the user of the said tramroad;

(E) The Board shall take all reasonable means for the prevention of trespass upon the said tramroad or the site of the said aqueduct;

(F) The Board shall not in any fence to be erected by them on any part of the estate unreasonably use barbed wire:

(13) The Board shall in addition to any other compensation payable to the owner his lessees or tenants under the provisions of this Act or any Act incorporated therein be responsible for and pay to the owner for all damage and injury to the stock trees or crops of the owner caused by or consequent upon the working of the said tramroad (whether the same shall be fenced off from the adjoining lands or not) or the construction or maintenance of any of the works by this Act authorised and for all damage done by fires caused by locomotives upon the tramroad:

(14) The Board shall in addition to any other compensation payable by them under or by virtue of this Act make full compensation to the owner for any damage caused to his estate by the congregation of large numbers of labourers during and for the purposes of the construction of the works by this Act authorised:

- (15) No servant of the Board shall after the completion of the said works so far as the same are to be constructed on the estate or any adjoining lands enter upon any part of the estate unless such servant shall be wearing some distinguishing uniform or badge or hold some written or printed authority from the Board and be engaged upon the business of the Board : A.D. 1912.
- (16) With regard to all carriage drives or roadways (including the Dunnov Private Road) on any part of the estate interfered with by any aqueduct or the said tramroad the provisions of sections 53 to 58 of the Railways Clauses Consolidation Act 1845 shall be deemed to be incorporated in this section with the substitution in section 56 of the said Act of the words "three months" for the words "twelve months" and in such provisions for the purposes of this section the word "railway" shall mean the works by this Act authorised and the words "the company" shall mean the Board and the Board shall so far as may be reasonably practicable maintain unaltered the level of the surface of every such carriage drive or roadway as aforesaid at or adjacent to the point of the intersection thereof by the said works or any of them and the said works and any alteration or enlargement thereof at and adjacent to such point of intersection shall be constructed and every such carriage drive or roadway shall be reconstructed and made good by the Board to the reasonable satisfaction of the owner and so as to cause as little damage as reasonably possible to such carriage drive or roadway and to the user thereof Provided that the Board shall not be required to remove any part of the said tramroad until the completion of the works by this Act authorised or the expiration of the period mentioned in the section of this Act the marginal note whereof is "Period for completion of works" (whichever of such events shall first happen) :
- (17) The Board shall not be entitled to purchase or take otherwise than by agreement any part of Black House Farm :
- (18) The aqueduct (Work No. 5) by this Act authorised and any such tramroad as aforesaid respectively shall not

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be constructed in under or upon the lands coloured pink on a plan signed in duplicate by Sir Charles Day Rose the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments of the House of Lords) but shall be placed by the Board between the said lands coloured pink on the said plan and the bed of the River Hodder:

- (19) No tramroad constructed by the Board between the south-westerly boundary of Great Dunnow Wood and the south-westerly boundary of the common lands in the village of Slaidburn shall be used for any purpose save between the hour of six in the morning and one hour after sunset:
- (20) In the construction maintenance and user of the works by this Act authorised the Board shall do as little damage as may be to any trees upon any part of the estate through which an easement only is acquired by the Board:
- (21) The owner shall be entitled to compensation for any injury or damage suffered by him by reason of any acts of the Board or their officers contractors or servants done or committed upon any lands of any other person for which he would be entitled to compensation if such acts were done or committed upon any part of the estate:
- (22) If any question shall arise between the Board and the owner as to the true intent and meaning of any of the provisions of this section or as to anything to be done or not to be done thereunder the same shall be referred to a single arbitrator Provided that in the case of any arbitration as to the amount of any compensation payable to the owner under subsections (1) and (13) of this section the provisions of section 34 of the Lands Clauses Consolidation Act 1845 and the Lands Clauses (Taxation of Costs) Act 1895 shall apply to such arbitration:

(23) The provisions of this section shall be in addition to A.D. 1912.

and not in derogation of any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the owner or his tenants Provided that the owner shall not in respect of the same loss or damage be entitled to recover compensation or damages under this section and also under any other provision of this Act or any Act incorporated therewith or otherwise but nothing in this section shall deprive the owner of any right to proceed to enforce any of the provisions of this Act by injunction mandamus or other legal process.

25. Notwithstanding anything contained in this Act the following provisions shall unless otherwise agreed to in writing have effect for the protection of William Peel or other the owner or owners for the time being (in this section called "the owner") of the estate known as the Knowlmere Manor Estate situate in the township of Newton aforesaid (in this section called "the estate") or any part of the estate:—

For protection of Knowlmere Manor Estate.

(1) The Board shall not without the consent of the owner enter upon take acquire or use either temporarily or permanently any of the lands forming part of the estate and coloured pink on the plan signed in duplicate by Sir Charles Day Rose the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (in this section called "the signed plan" one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments of the House of Lords) or any easement in or over the same:

(2) The Board shall not without such consent as aforesaid acquire any of the lands coloured green on the signed plan or any easements or rights in or over the same other than and except an easement or right of making maintaining using cleansing repairing and renewing the aqueduct (Work No. 5) by this Act authorised and of obtaining access thereto and an easement or right of making maintaining working using repairing and renewing a tramroad but the Board may acquire such easements or rights in accordance with the provisions of subsection (1) of the section of this Act

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the marginal note of which is "Board may acquire easements only in certain cases" Provided that subsections (2) and (3) of such section shall not apply to such easements or rights or to the lands subject thereto or to the Board or the owner in respect thereof Provided also that the Board shall be at liberty to make use of any material excavated in the construction or maintenance of the said works :

- (3) Subject and without prejudice to the generality of the prohibitions contained in subsection (1) of this section in respect of the land coloured pink on the signed plan the provisions of subsections (2) to (11) (12) (except subhead (c) thereof) (13) (15) (16) (22) and (23) of the section of this Act whereof the marginal note is "For protection of the King - Wilkinson Estates" shall so far as the same are respectively capable of being so applied be deemed to be incorporated with this section and shall apply to the estate and to the person or persons in this section respectively called "the estate" and "the owner" in the same manner in all respects as if the same were herein repeated Provided that in construing the said subsection (22) in its application to this section the reference to subsection (1) shall be read as a reference to subsection (2) of this section Provided further that the said subsection (16) shall apply only to the carriage drives marked A B C D E F and G H on the signed plan.

For protection of Earl of Derby and others.

26. Notwithstanding anything contained in this Act the following provisions shall (unless otherwise agreed in writing) apply and have effect for the protection of each of the owners named in the First Part of the Second Schedule to this Act or other the owners or owner for the time being of the estates or of any part of the estates situate in the West Riding of the county of York and the county of Lancaster respectively and mentioned in the First Part of the said Second Schedule and each of such estates is in this section referred to as "the estate" and each of the said owners as "the owner" :—

- (1) The Board shall not without the consent in writing of the owner acquire any part of the estate or any easement or right in or over the same other than and except an easement or right of making maintaining

using cleansing repairing and renewing the aqueduct (Work No. 5) by this Act authorised and of obtaining access thereto and an easement or right of making maintaining working using repairing and renewing a tramroad but the Board may acquire such easements or rights in accordance with the provisions of subsection (1) of the section of this Act the marginal note of which is "Board may acquire easements only in certain cases" Provided that subsections (2) and (3) of such section shall not apply to such easements or rights or to the lands subject thereto or to the Board or the owner in respect thereof Provided also that the Board shall be at liberty to make use of any material excavated in the construction or maintenance of the said works ;

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- (2) The provisions of subsections (2) to (11) (12) (except subhead (c) thereof) (13) (15) (16) (22) and (23) of the section of this Act the marginal note whereof is "For protection of the King-Wilkinson Estates" shall so far as the same are respectively capable of being so applied be deemed to be incorporated with this section and shall apply to each of the estates and persons in this section respectively called or included in the expression "the estate" and "the owner" in the same manner in all respects as if the same were herein repeated Provided that in construing the said subsection (22) in its application to this section the reference to subsection (1) shall be read as a reference to subsection (1) of this section.

27. For the protection of the West Riding of Yorkshire Rivers Board (in this section referred to as "the rivers board") the county councils of the West Riding of Yorkshire and of the county palatine of Lancaster and the River Ribble Joint Committee the following provisions shall unless otherwise agreed in writing between those authorities on the one hand and the Board on the other hand have effect (that is to say):—

For protection of West Riding Rivers Board West Riding County Council Lancashire County Council and River Ribble Joint Committee.

- (1) The Board shall construct and maintain in good repair efficient gauges and apparatus for registering and automatically recording the flow of the several quantities of compensation water to be provided in accordance with the section of this Act whereof the marginal note is "Compensation water" (herein-after in this

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section called the "compensation water") and for registering and automatically recording the quantities of water taken appropriated and used and the quantities of water allowed to pass and flow down the several rivers or streams mentioned in the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" and shall keep the records of all such registers for a month at some convenient place near the respective gauges referred to in the said sections and thereafter at the head office of the Board and it shall be the right and (as between the rivers board on the one hand and the said county councils and joint committee on the other hand) the duty of the rivers board from time to time to inspect the said gauges apparatus and records which records shall at all convenient times be open to such inspection:

(2) In case the Board shall omit or fail to discharge the said several quantities of compensation water or in case the Board shall omit or fail to comply with or observe the restrictions and obligations contained in the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" the Board shall on summary conviction at the instance of the rivers board of any such omission or failure forfeit and pay to the rivers board the sum of five pounds for every day or part of a day on which such omission or failure shall occur:

(3) The powers of taking water under the section of this Act whereof the marginal note is "Supply from Bottoms Beck and River Hodder until completion of reservoirs" shall cease at whichever of the following dates shall be the earlier viz.:—

(A) The date of the completion of the construction of one of the impounding reservoirs by this Act authorised; or

(B) The expiration of nine years from the passing of this Act Provided that if in the opinion of an engineer to be appointed by the President of the Institution of Civil Engineers on the application

of the Board the Board shall have been prevented by unforeseen circumstances from completing one of such reservoirs within the said period of nine years such period shall be extended to such date as the said engineer may allow. Provided also that all costs reasonably and properly incurred by the rivers board and the said county councils and joint committee or any of them in connection with the reference to any such engineer shall be borne and paid by the Board unless such engineer shall certify that the conduct of the rivers board and the said county councils and joint committee or any of them has been unreasonable :

(4) Not more than five million gallons shall be taken or appropriated in any one day under the section of this Act whereof the marginal note is "Supply from " Bottoms Beck and River Hodder until completion " of reservoirs " :

(5) If any question shall arise between the Board on the one hand and the rivers board and the said county councils and joint committee or any of them on the other hand under subsection (1) or subsection (3) of this section such question shall be referred to and determined by an arbitrator to be agreed upon between the parties in dispute or failing such agreement to be appointed on the application of any or either of such parties by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

28. Notwithstanding anything in this Act contained the following provisions shall (except so far as may be otherwise agreed in writing) apply for the protection of the Ribble Fishery Board :—

For protection of Ribble Fishery Board.

(1) Where any aqueduct main or pipe by this Act authorised is constructed under over or through the River Hodder or any of its tributaries the said aqueduct main or pipe shall be laid and constructed so as not in any way to impede or interfere with the said river or tributary or the free passage of water therein :

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(2) (A) Before commencing the construction of Works Nos. 1 2 3 6 7 and so much of No. 5 as lies north east of the township of Whittingham or any of such works the Board shall pay into the Manchester and Liverpool District Banking Company Limited (Preston Branch) to the credit of the Board of Agriculture and Fisheries and the Ribble Fishery Board (herein-after called "the trustees") the sum of two thousand pounds;

(B) The said sum of two thousand pounds shall be placed on deposit in the said bank and together with any interest thereon shall be expended by the trustees first in improving the fisheries of the River Hodder and its tributaries below the dam of Work No. 1 by this Act authorised in such manner as may be agreed between the Board and the Ribble Fishery Board and any part of the said sum which may remain after the said improvements have been carried out shall be expended in improving the fisheries in the River Ribble and its tributaries as may be agreed between the said boards. Any difference which may arise between the said boards under this subsection shall be determined by an arbitrator to be appointed by the President of the Surveyors' Institution on the application of either board and the provisions of the Arbitration Act 1889 shall apply to the proceedings in connection with any such difference:

(3) Nothing in this Act shall be deemed to alter the limits of the River Ribble or of the fishery district of the said river as defined by order or certificate under the provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1907 or any Act amending the same.

Temporary
discharge of
water into
streams.

29.—(1) For the purpose of constructing enlarging extending repairing cleansing or examining the aqueducts reservoirs and other waterworks of the Board the Board may cause the water in such works or any of them to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

30. For the protection of the River Ribble Joint Committee the following provisions shall unless otherwise agreed in writing between the said Ribble Joint Committee and the Board have effect (that is to say):—

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For protection of River Ribble Joint Committee.

The Board shall not in exercising the powers of the section of this Act of which the marginal note is "Temporary discharge of water into streams" cast or permit or suffer to pass or be cast or washed into any stream or water-course passing through or by the county of Lancaster any mud sludge or offensive matter or other deposit or materials contained in or taken out of or removed from any of their reservoirs aqueducts or other waterworks.

31. For the protection of the West Riding of Yorkshire Rivers Board the following provisions shall unless otherwise agreed in writing between the said rivers board and the Board have effect (that is to say):—

For protection of West Riding Rivers Board.

The Board shall not in exercising the powers of the section of this Act whereof the marginal note is "Temporary discharge of water into streams" cast or permit or suffer to pass or be cast or washed into any stream or water-course passing through or by the West Riding of the county of York any mud sludge or offensive matter or other deposit or materials contained in or taken out of or removed from any of their reservoirs aqueducts or other waterworks.

32.—(1) If at any time it shall appear to the medical officer of health for the county of Lancaster that any water supplied by the Board is liable to act upon lead in such a manner as to endanger the health of the consumer the Board shall upon being required so to do by the said county council forthwith treat any water so supplied so as to prevent such action. Provided that if any difference arises between the Board and the said county council with respect to any requirement made under this subsection the difference shall be determined by the Local Government Board on the application of either of the parties.

For prevention of plumbism.

(2) If the Board shall at any time supply water otherwise than in accordance with the provisions of subsection (1) of this section they shall be liable to a penalty not exceeding ten pounds for every day during which such default shall continue and such penalty shall be recoverable by the county council before a court of summary jurisdiction.

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Applica-
tion of
Waterworks
Clauses Act
1847 to
aqueducts
discharge
pipes and
telephones.

33. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the aqueducts authorised by this Act and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Board may and which they are hereby authorised to erect or lay down for the purposes of their water undertaking.

For pro-
tection of
Postmaster-
General.

34. No telephone or telegraph posts wires conductors or apparatus erected laid down made or maintained under the authority of this Act shall be used for transmitting telegrams which are within the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869.

Temporary
stoppage of
streets.

35. The Board may with the consent of the road authority during the execution and for the purposes of any work authorised by this Act stop up any street and prevent all persons other than those bonâ fide proceeding to or returning from any house in the street from passing along and using the same for any reasonable time and the Board shall provide reasonable access for all persons so bonâ fide proceeding to or returning from any such house.

Works to form
part of under-
taking of
Board.

36. The works by this Act authorised shall for all purposes be deemed part of the water undertaking of the Board.

As to county
bridges in
West Riding
of Yorkshire.

37. The following provisions for the protection of the county council of the West Riding of Yorkshire (in this section called "the county council") shall have effect with reference to the construction or laying down of any aqueducts mains pipes or other works under the powers of this Act so far as the same affect any county or main road bridge of the said West Riding or the approaches to any such bridge (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans or sections the Board shall not without the consent of the county council construct or lay any aqueducts mains pipes or works in upon or across any county or main road bridge within the West Riding of Yorkshire or in upon or across the approaches to any such bridge other than the approaches referred to in the next following subsection of this section:

(2) It shall be lawful for the county council at any time or times to remove alter widen or renew the approaches to the Slaidburn and Newton bridges in the same manner as they might have diverted widened or improved removed altered or renewed such approaches if this Act had not been passed without making any compensation to the Board for any expense or loss to which the Board may be put in consequence of such removal alteration or renewal. And in the event of any such approaches being removed altered or renewed as aforesaid the Board shall at their own expense as and when requested by the surveyor of the county council remove or alter the position of the aqueducts mains pipes or works laid therein and relay the same to the reasonable satisfaction of the said surveyor if relaid upon any road or approach under the control of the county council. Provided that before and during the removal alteration or renewal of any such approaches as aforesaid the county council shall afford at the cost of the Board reasonable facilities for the temporary accommodation of the aqueducts mains pipes or works removed or altered: A.D. 1912.

(3) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply with respect to the construction or laying by the Board of aqueducts mains pipes or works in upon or across the approaches to the bridges referred to in the last preceding subsection of this section. Provided that for the purposes of this section section 30 of the said Act shall be read and have effect as if fourteen clear days had been therein specified instead of three clear days:

(4) If any difference arises between the Board and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties in difference.

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LANDS.

Power to
acquire
lands.

38. Subject to the provisions and for the purposes of this Act the Board may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference other than and except the lands in the townships of Bowland Forest (High) and Slaidburn the numbers of which on the deposited plans are set forth in the Third Schedule to this Act.

Common
lands.

39. The Board shall not acquire any part of the common known as Slaidburn Village Green or any easements or rights in or over the same other than and except an easement or right of making maintaining using cleansing repairing and renewing the aqueduct (Work No. 5) by this Act authorised and of obtaining access thereto.

Owners may
be required
to sell parts
only of
certain
lands and
buildings.

40. Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Board of the powers of this Act it may happen that portions only of certain properties shown on the deposited plans will be sufficient for the purposes of the Board and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Board or each or any of them are hereinafter in this section included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Board that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

- (3) If within such twenty-one days the owner shall by notice in writing to the Board allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed: A.D. 1912,
- (4) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion which the tribunal shall have determined to be so severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges

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and expenses reasonably and properly incurred by him in consequence of such notice :

- (7) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Board may
acquire ease-
ments only
in certain
cases.

41.—(1) The Board may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Board have acquired easements only under the provisions of this section the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Board to acquire by compulsion any such

easement in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision. A.D. 1912.

42. The following provisions shall unless otherwise agreed in writing apply and have effect for the benefit and protection of the vicar and churchwardens for the time being of the parish church of Dale Head in the West Riding of the county of York (that is to say):— For protection of vicar and churchwardens of Dale Head.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Board shall not take or acquire nor (except for the purposes of this section and the sections of this Act the marginal notes whereof are respectively "Further protection of vicar and churchwardens of Dale Head" and "Removal of human remains") enter upon or use the lands numbered 157 to 162 (inclusive) on the deposited plans for the township of Easington or any part thereof nor interfere with the parish church vicarage schools schoolmaster's house and other buildings and premises standing thereon or any part thereof And if the Board shall at any time or times interfere with or affect any supply or supplies of water to the said lands buildings and premises or any of them they shall forthwith at their own expense and to the reasonable satisfaction of the said vicar and churchwardens for the time being provide and at all times thereafter maintain an adequate supply of water in lieu of every supply of water so at any time interfered with or affected Provided that any supply of water afforded under the provisions of this section in substitution for the supply obtained from the well in the garden belonging to the said vicarage the well in the paddock belonging to such vicarage and the tank in the yard belonging to the said schoolmaster's house or any of them shall be a free supply and any other supply of water afforded under the provisions of this section shall be paid for at the same rate or price for water as that paid for like purposes in the Board's present limits of supply or at the same rate or price as was being paid for

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water supplied to the said church vicarage schools schoolmaster's house buildings and premises immediately prior to the first day of February one thousand nine hundred and twelve whichever shall be the less Provided further that the Board shall be at liberty and they are hereby empowered at their own expense to execute and carry out to the reasonable satisfaction of the said vicar and churchwardens for the time being any necessary works for the purpose of dealing with the sewerage and drainage of the said lands and premises in order to prevent pollution arising therefrom to the water which they are authorised to collect and impound under this Act :

- (2) Any difference which may arise under this section between the Board and the said vicar or between the Board and the said vicar and churchwardens shall be determined by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Surveyors' Institution and the provisions of the Lands Clauses Acts shall apply to any such arbitration.

Further protection of vicar and churchwardens of Dale Head.

43. For the further benefit and protection of the vicar and churchwardens for the time being of the parish church of Dale Head in the West Riding of the county of York the following additional provisions shall apply and have effect (that is to say) :—

- (1) Before commencing any works in through or affecting the burial ground attached to the said church the Board shall remove or cause to be removed the remains of all deceased persons interred in the said burial ground :
- (2) Before proceeding to remove any such remains the Board shall—

(A) at their own expense in all things—

(i) purchase and acquire and shall convey or cause to be conveyed to the said vicar for the time being and his successors incumbents for the time being of the benefice of St. James otherwise the parish church of Dale Head aforesaid a plot of land of an area of not less

than the said existing burial ground in such situation as the Bishop of Ripon may reasonably approve; A.D. 1912.

(ii) fence in the said plot of land with fencing and gates of such height pattern and materials as the said vicar and churchwardens for the time being may reasonably require and shall lay out prepare level and drain the same to the like approval in order that the same may be used as a burial ground for the said parish in substitution for the said existing burial ground;

(iii) erect upon such part of the said plot of land as the said vicar and churchwardens for the time being may select a mortuary chapel of such size design and materials as the said vicar and churchwardens for the time being may reasonably require;

(b) bear and pay to the said vicar and churchwardens for the time being all the costs charges and expenses of and attendant on the consecration of the said plot of land and mortuary chapel and obtaining the approval of the said bishop as aforesaid:

(3) On the completion of the conveyance of the said plot of land to the said vicar and his said successors and on carrying out the conditions contained in subsection (2) of this section and upon such consecration as aforesaid the said plot of land shall vest in the said vicar and his said successors under the like conditions as the said existing burial ground and shall be held by them for a burial ground for the said parish:

(4) When and as soon as the said plot of land shall have vested in the said vicar or his said successors as aforesaid the Board shall lay out level drain and reinstate the said existing burial ground to the reasonable satisfaction of the said vicar and churchwardens for the time being and the said existing burial ground shall not be used for burials but the same shall remain and continue vested in the said vicar and his said successors:

A.D. 1912.

- (5) Any difference which may arise under this section between the Board and the said vicar or between the Board and the said vicar and churchwardens shall be determined by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Surveyors' Institution and the provisions of the Lands Clauses Acts shall apply to any such arbitration.

Removal
of human
remains.

44.—(1) Before proceeding to remove any remains of deceased persons interred in the burial ground of St. James' (otherwise the parish church of Dale Head in the West Riding of the county of York) the Board shall publish a notice for three successive days in two local newspapers circulating in the parish to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (2) (3) (4) (5) and (6) of this section.

(2) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial ground may give notice in writing to the Board of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as herein-after mentioned to any regulations made by the Bishop of Ripon to cause such remains to be removed to and reinterred in any consecrated burial ground or cemetery in which burials may legally take place.

(3) If any person giving such notice as aforesaid shall fail to satisfy the Board that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Ripon who shall have power to make an order specifying who shall remove the remains.

(4) The expense of such removal and reinterment (not exceeding in respect of remains removed from any one grave the sum of ten pounds) shall be defrayed by the Board such sum to be apportioned if necessary equally according to the number of remains in the grave.

(5) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Board in respect of the remains in any grave or if after such notice has been

given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the Board may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as the Board think suitable for the purpose subject to the consent of the bishop. A.D. 1912.

(6) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Board be removed and be re-erected at the place of reinterment of such remains or at such place within the parish as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Board.

(7) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the West Riding of the county of York.

45. The powers of the Board for the compulsory purchase of lands under this Act shall not be exercised as regards the lands necessary for Works Nos. 1 3 5 and 7 after the expiration of five years from the passing of this Act and as regards the lands necessary for the remaining works after the expiration of seven years from the passing of this Act. Period for compulsory purchase of lands.

46.—(1) In addition to any land vested in the Board or which they are authorised to purchase the Board may from time to time by agreement purchase take on lease and hold such further quantities of land within the drainage areas of the River Hodder and the Bottoms Beck as they may deem expedient in order to protect the streams communicating with their waterworks against nuisance pollution fouling contamination or discoloration and such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively Provided that no buildings shall be erected on such lands except buildings required for the purposes of the waterworks. Power to purchase additional lands by agreement.

(2) The Board may also for other purposes of their water undertaking purchase take on lease and acquire by agreement and hold any other lands not exceeding twenty acres provided that the Board shall not create or permit the creation or continuance of any nuisance on any such lands.

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Dwelling-houses for persons in Board's employment.

47. The Board may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their water undertaking and may erect maintain and let dwelling-houses for such persons upon any lands for the time being belonging to the Board for the purposes of the said undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Board for the purposes of the said undertaking.

Persons under disability may grant easements &c.

48. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to sell lands.

49. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable the Board may sell lease and dispose of any lands acquired by them in connection with their water undertaking and not for the time being required for the purposes thereof.

Application of moneys arising from sale of lands.

50. The Board shall apply all moneys from time to time received by them in respect of any sales exchanges or disposition of lands purchased by them for the purposes of this Act or by way of fine or premium on any lease of such lands and any other moneys received on capital account under this Act in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Board and such proceeds shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Reservation of water rights &c. on sale.

51. The Board on selling any lands acquired by them in connection with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such

other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. A.D. 1912.

52. The Board may in and upon the lands acquired by the Board within the drainage areas hereinbefore referred to in this Act or in or upon any other lands within such drainage areas with the consent of the owners lessees or occupiers of such lands construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Board are empowered to take or impound from being polluted fouled contaminated or discoloured and the Board may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road in or adjoining such lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to lay down sewers and drains in drainage areas.

53.—(1) The Board may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within the areas from or through which the said waters flow or within so much of those areas as may be defined in the byelaws.

(3) The provisions with respect to byelaws to be made by an urban authority contained in sections 182 to 186 of the Public Health Act 1875 shall apply to byelaws made by the Board under this section.

(4) All byelaws made under this section shall be subject to the approval of the council of every district comprising any part of the area within which it is proposed that they shall be in force. Provided that such consent shall not be necessary where in the opinion of the Local Government Board it has been unreasonably withheld.

A.D. 1912.

(5) The Board shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Power to agree as to drainage of land &c.

54. The Board may make and carry into effect agreements with the owners lessees and occupiers of any lands within the drainage area of any reservoir or other waterworks belonging to them with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Board are for the time being authorised to divert collect and appropriate flowing to upon or from such lands directly or derivatively into such reservoirs and works.

Power to hold lands for protection of waterworks.

55. The Board may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Board shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Amendment of section 28 of Act of 1910.

56. Section 28 (Board to determine source of supply) of the Act of 1910 shall extend and apply to and with respect to any source of supply or service reservoir authorised by this Act as if such source of supply or reservoir were expressly mentioned or referred to in that section.

Contracts for supplying water in bulk.

57. The Board may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond their limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any authority company or person supplying water under Parliamentary

authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply of the Board. A.D. 1912.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

58.—(1) The Board may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

(A) For and in connection with the purchase of lands and the construction of the reservoirs and road diversions authorised by this Act the sum of one million and thirty-six thousand nine hundred and eighty-five pounds:

(B) For and in connection with the construction of the aqueducts authorised by this Act the sum of three hundred and eighty-six thousand three hundred and seventy-nine pounds:

(C) For paying the costs charges and expenses of this Act as herein-after provided the sum requisite for that purpose.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Board may mortgage or charge the revenue of their water undertaking and the moneys receivable by them from the constituent authorities defined by the Act of 1897 and all rates and moneys which they are authorised to levy and collect within the districts of the constituent authorities under the powers of that Act.

(3) The Board shall pay off all moneys borrowed by them under this section within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):—

As to moneys borrowed for the purposes (A) within sixty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (B) within forty-five years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (C) within five years from the passing of this Act:

A.D. 1912. Provided that it shall not be obligatory upon the Board to commence the repayment (by sinking fund or otherwise) of any moneys to be borrowed under this Act for the purposes (A) and (B) mentioned in subsection (1) of this section until the completion of those works respectively or until the expiration of ten years from the passing of this Act whichever shall first happen.

Incorporation of financial provisions of Act of 1897.

59. The following sections of the Act of 1897 shall with the necessary modifications extend and apply to and with respect to moneys borrowed under this Act:—

Section 50 (Mode of raising money);

Section 51 (Provisions of Public Health Act as to mortgages to apply);

Section 53 (Mode of payment off of money borrowed);

Section 54 (Sinking fund);

Section 55 (Protection of lender from inquiry);

Section 56 (Board not to regard trusts);

Section 57 (Appointment of receiver);

Section 59 (Annual return to Local Government Board) as amended by section 36 of the Act of 1910;

Section 60 (Application of money borrowed);

Section 62 (Board may issue stock);

Section 66 (Audit).

Power to re-borrow.

60.—(1) The Board shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Board in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original

loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1912.

(3) The Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following provisions are hereby repealed but without prejudice to anything done or suffered to be done thereunder (namely):—

Section 58 (Power to re-borrow) of the Act of 1897 and so much of section 32 of the Act of 1910 as incorporates that section.

61. The concluding words of section 7 (Power to issue stock) of the Act of 1899 shall be read and have effect as follows (namely) “and the rate per centum per annum for the purposes of those provisions shall be three pounds per centum per annum.” Amendment of section 7 of Act of 1899.

62.—(1) Save as otherwise by this Act expressly provided all offences against and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any of the Acts or Orders relating to the Board or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

(2) Section 49 (Recovery of penalties) of the Act of 1899 is hereby repealed.

A.D. 1912.

Inquiries
by Local
Government
Board.

63. The provisions of section 67 (Inquiries by Local Government Board) of the Act of 1897 shall apply with respect to the exercise of any powers conferred upon or the giving of any consents by the Local Government Board under the provisions of this Act.

Costs of Act.

64. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board and may be paid out of the revenue of their water undertaking or out of moneys borrowed under the powers of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY
BE TAKEN.

County.	Area.	Nos. on deposited Plans.
West Riding of the county of York.	Township of Newton -	Nos. 80 93.
" "	Township of Bowland Forest (Low).	Nos. 54 55 56 56A 57.
County Palatine of Lancaster -	Thornley-with-Wheatley	No. 16.
" "	Whittingham -	Nos. 31 63.
" "	Treales Roseacre and Wharles.	No. 9.
" "	Medlar-with-Wesham -	No. 3.
" "	Westby-with-Plumpton	Nos. 21 22 23 52 54 55.

THE SECOND SCHEDULE.

LIST OF CERTAIN RIPARIAN OWNERS AND OF THEIR
RESPECTIVE ESTATES.

Names.	Estates.
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PART I.

William John Frampton - - -	Newton Hall estate.
Mary Matilda Weld - - -	Legram estate.
The Right Honourable Edward George Villiers Earl of Derby.	The Derby estates in the townships of Thornley-with-Wheatley Chipping Treales Medlar-with-Wesham and Weeton.

PART II.

William King-Wilkinson - - -	Whiteholme Dunnaw and Townhead estates.
William Peel - - -	Knowlmere Manor estates.
Henry Wilson Worsley-Taylor - -	Bashall Eaves (including Forest of Bowland and Chaigley) estates.
The trustees of the will of William Dugdale deceased.	Plantation Farm Chaigley.
Alice Woodcock Turner and the trustees of the will of Colonel Henry Turner deceased.	Chadswell estate.
William Alfred Winstanley - - -	Chaigley Manor estate.

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Names.	Estates.
The Reverend William Bodkin - The Reverend Michael Maher - The Reverend Charles Nicholson - The Reverend John Hungerford Pollen }	Stoneyhurst College and Hodder Place estates.
Joseph Eastham Faulkner - - -	Higher Hodder Bridge estate.
Elizabeth Sager - - - - -	Sager Fold estate.
Alfred Hitchon - - - - -	Scott House estate.
Colonel Ralph John Aspinall - - -	Mitton estates.
Thomas Rawcliffe - - - - -	Spring Wood House estate.
William Walmsley Simpson - - -	Winckley estates.

THE THIRD SCHEDULE.

DESCRIBING LANDS EXCEPTED FROM THE SECTION OF THIS ACT WHEREOF THE MARGINAL NOTE IS "POWER TO ACQUIRE LANDS."

County.	Township.	Numbers on deposited Plans.
West Riding of the county of York.	Bowland Forest (High).	134 135 136 137 138 139 140 141 142 143 144 145 146 147 148.
	Slaidburn - - -	104 105 111 112 109 108 114 115 113 106 107 116 117 123 122 121 120 39 119 17 110 118 105 109 160 161 162 159 158 118 124 126 127 128 129 132 130 131 150 148 146 145 151 152 133 125 157 156 155 154 153 149 147 144 163 164 165 166 168 169 167 143 142 139 140 134 138 135 136 137 170 171 172 173 175 174 184 176 185 178 179 180 181 182 186 192 187 191 188 183 59 60 58 47 189 190 177 on Sheet No. 1. 47 58 57 58A 59 60 61 56 55 70 69 65 66 68 64 71 62 63 67 49 51 52 50 54 48 53 43 45 46 44 41 42 on Sheet No. 2.

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